

CYBER-SECURITIES PURCHASE AGREEMENT
(simultaneous sign/close)
V2

This Cyber-Securities Purchase Agreement (this “**Agreement**”) is being entered into as of the time of completion of the Adoption Procedures by an entity selling and issuing a certain security or certain securities of such entity as set forth on Exhibit A (the “**Security(ies)**”) pursuant to this Agreement (the “**Company**”) and an individual or entity purchasing the Security(ies) pursuant to this Agreement (the “**Investor**” and together with the Company, the “**Parties**” and each a “**Party**”) with the intention of completing a potential Security(ies) Purchase wherein the Investor will purchase the Security(ies) from the Company for an amount of U.S. dollar value (the “**Purchase Amount**”) paid for by the Investor in Blockchain Tokens, with the Security(ies) being represented by one or more Certificate Tokens to be issued to the Investor on the Designated Blockchain System.

The Parties wish to enter into this Agreement via specific Blockchain Systems and to commit their respective Blockchain Tokens to the control of a particular Smart Contract that will serve as a non-custodial escrow enabling automated entry into this Agreement and consummation of the Security(ies) Purchase.

Certain capitalized terms used in this Agreement are defined in Section 5.

The Agreement Template for this Agreement, and certain of the Deal Management Technologies assisting with the execution and delivery of this Agreement and the consummation of the Security(ies) Purchase, were authored and deployed by MetaLeX. By entering into or using this Agreement or any of the Deal Management Technologies, you also acknowledge and agree to the MetaLeX Terms, License and Disclaimers set forth on Exhibit D. Additionally if you are using the MetaLeX Web Application in connection with the foregoing, you agree to the MetaLeX Web App Terms of Service.

1. Security(ies) Purchase.

- 1.1** Security(ies) Purchase Terms. The Company hereby sells and issues the Security(ies) (represented as one or more Certificate Tokens on the Designated Blockchain System) to the Investor, and the Investor hereby purchases the Security(ies) by paying the Purchase Amount (represented as certain Blockchain Tokens on the Designated Blockchain System (the “**Purchase Amount Tokens**”)) to the Company (such sale, issuance, and purchase, the “**Security(ies) Purchase**”).
- 1.2** Adoption Procedures. The Parties shall mutually execute and deliver this Agreement and consummate the Security(ies) Purchase by following the Adoption Procedures set forth in Section 5.1. Completion of the Adoption Procedures by the Parties will cause the details of this Agreement and the Security(ies) Purchase to be recorded on the Designated Blockchain System and will deploy certain Smart Contracts on the Designated Blockchain System to assist with the performance of the Parties’ respective obligations under this Agreement, including the Round Manager Smart Contract that will escrow the Parties’ respective Blockchain Tokens (i.e., the Purchase Amount Tokens and the Certificate Token(s)) and effectuate the Security(ies) Purchase.

2. Representations/Warranties.

Each Party hereby represents and warrants, to and for the benefit of the other Party and MetaLeX (as third-party beneficiary of this Section 2) as follows in this Section 2:

- 2.1** Security(ies) Representations/Warranties. Each Party hereby makes the representations and

warranties set forth in the Security(ies) that are applicable to such Party (based on whether such Party is the Investor or the Company), as if set forth herein.

2.2 Authorization.

- (a) If such Party is an entity, all actions necessary to be taken by such Party's directors, managers, officers, members, stockholders, shareholders, debtholders, other holders of equity and/or debt securities, and other persons with a direct or indirect authority over or economic, beneficial or voting interest in such Party in order to authorize such Party to enter into, and perform such Party's obligations under, this Agreement have been taken and such Party has full power and authority to enter into this Agreement.
- (b) If such Party is a natural person, such Party is fully authorized to enter into this Agreement on such Party's own behalf, has the legal capacity to do so, is of the legal age of majority in the jurisdiction of their primary residence, and is of sound mind.

2.3 Enforceability. This Agreement, when executed and delivered by such Party and the other Party(ies) hereto, shall constitute a valid and legally binding obligation of such Party, enforceable against such Party in accordance with its terms, except as limited by: (a) applicable bankruptcy, insolvency, reorganization, moratorium, fraudulent conveyance, or other laws of general application relating to or affecting the enforcement of creditors' rights generally or (b) laws relating to the availability of specific performance, injunctive relief, or other equitable remedies.

2.4 Compliance with Other Agreements Etc. The execution, delivery and performance of this Agreement and the consummation of the transactions contemplated by this Agreement by such Party will not result in a breach or violation of or default under, or otherwise be in conflict with, any instrument, judgment, order, writ, decree, contract or agreement to which such Party is a Party or by which such Party or any of the Blockchain Tokens to be delivered by such Party pursuant to this Agreement are bound.

2.5 Local Law Compliance. Such Party hereby represents that such Party's execution, delivery and performance of this Agreement complies in all material respects with all laws applicable to such Party.

2.6 Private Key Ownership. Based on the knowledge of such Party, such Party is the sole and exclusive holder, knower and owner of the private key(s) controlling all blockchain addresses of such Party referred to in or necessary for the performance of this Agreement and of the "seed(s)" used to generate the pairing of such private key(s) with such address(es).

2.7 AML Compliance. Based on the knowledge of such Party, none of the Blockchain Tokens to be utilized by such Party in connection with this Agreement are derived from or related to any unlawful activities, including money laundering, terrorist financing or proliferation financing. Based on the knowledge of such Party, neither such Party nor any person for whom such Party is acting as agent or nominee in connection with the Security(ies) Purchase is the subject of (or is subject to) sanctions administered or enforced by any applicable intergovernmental organization or governmental authority, or is organized or residing in a country or territory that is the subject of country-wide or territory-wide sanctions administered or enforced by any applicable intergovernmental organization or governmental authority.

2.8 Purchase Amount Tokens. The Investor represents and warrants to the Company that the Purchase Amount Tokens are solely owned by and constitute the property of the Investor, free and clear of

all liens, claims, encumbrances, and transfer restrictions.

- 2.9** No Other Representations. In entering into and performing its obligations under this Agreement, such Party is not relying on any statement, representation or warranty, or omission of any statement, representation or warranty (whether express or implied, or arising by operation of any law, principle of equity or statute, or otherwise), other than the representations and warranties of the other Party expressly set forth in this Section 2. Except to the extent solely based on a breach of the representations and warranties of the other Party expressly set forth in this Section 2 made within the applicable statute of limitations, the other Party will have no liability or other obligation to such Party resulting from any statement, information, representation or warranty, or omission of any statement, information, representation or warranty (whether express or implied, or arising by operation of any law, principle of equity or statute, or otherwise) given to or made to such Party in connection with or relating directly or indirectly to the subject matter of this Agreement.

3. Agreements Regarding Use of the Deal Management Technologies

- 3.1** Agreement to Use and Presumption of Correctness of Deal Management Technologies. By entering into this Agreement, the Parties are agreeing to automate certain aspects of the execution, delivery, and performance of this Agreement and the Security(ies) by means of the Blockchain Systems, Blockchain Tokens, and Smart Contracts referred to in this Agreement (the “**Deal Management Technologies**”). To best secure the benefits of the Deal Management Technologies (including increased efficiency, reduced counterparty performance risk, transparency, reduction of transaction costs, and finality), the Parties hereby agree that in any Dispute, the results of operation of the Deal Management Technologies shall be presumed to be consistent with this Agreement and the Security(ies), to reflect the understanding and intentions of the Parties, and to be final, binding and determinative on the Parties, except to the extent materially adversely affected by any of the following events occurring or being reasonably expected to occur (each, a “**Material Adverse Exception Event**”):

- (a) a Consensus Attack adversely affecting the results or operations of such Designated Smart Contract;
- (b) a change to the consensus rules of the Designated Blockchain System or Ethereum that could reasonably be expected to adversely affect the results or operations of such Designated Smart Contract or could reasonably be expected to result in a “contentious hard fork” (as such term is commonly understood and used by software engineers expert in developing blockchain protocol software clients) of the Designated Blockchain System or Ethereum;
- (c) a “reorganization” (as such term is commonly understood and used by software engineers expert in developing blockchain protocol software clients) of the Designated Blockchain System or Ethereum that could reasonably be expected to adversely affect the results or operations of such Designated Smart Contract;
- (d) such Designated Smart Contract having become inoperable, inaccessible or unusable, or any Blockchain Tokens under the control of such Designated Smart Contract having become permanently “frozen,” “stuck” or non-transferable (where such a condition shall be deemed “permanent” if such condition would persist except in the event of a change to the consensus rules of the Designated Blockchain System or Ethereum that is not reasonably expected to occur in the near future), including as the result of any code library or repository incorporated by reference into such Designated Smart Contract or any other smart contract or oracle on which such Designated Smart Contract depends in whole or in part having

become inoperable, inaccessible or unusable or having itself suffered a Material Adverse Exception Event, *mutatis mutandis*;

- (e) a material and adverse effect on the use, functionality or performance of such Designated Smart Contract as the result of a clear and manifest bug, defect or error in such Designated Smart Contract, as evidenced by the failure of such Designated Smart Contract to function in accordance with provisions of this Agreement expressly pertaining to such Designated Smart Contract or by documentation or other evidence prepared contemporaneously with the Designated Smart Contract source code demonstrating that the intended functioning of such Designated Smart Contract differs materially from the actual functioning as a result of such bug, defect or error;
- (f) a person other than an intended counterparty participating in the Adoption Procedures or obtaining the Purchase Amount Tokens or the Certificate Token(s) in a manner that enables them to participate in the transactions contemplated by this Agreement, including by *misappropriating* the secret referred to in Section 5.2(a)(iii), impersonating an intended counterparty or otherwise providing false information during the Adoption Procedures, or depositing Blockchain Tokens into the Round Manager Smart Contract ahead of an intended counterparty;
- (g) such Designated Smart Contract or any of the Blockchain Tokens controlled by such Designated Smart Contract becomes subject to an Order or applicable Legal Requirement that permanently or temporarily prohibits or restrains such Designated Smart Contract (or that, if such Designated Smart Contract were a person, would prohibit or restrain such *Designated* Smart Contract) from executing any function or operation it would otherwise reasonably be expected to execute or permanently or temporarily orders or directs such Designated Smart Contract (or that, if such Designated Smart Contract were a person, would order or direct such Designated Smart Contract) to take an action or bring about a circumstance it would otherwise not reasonably be expected to take or bring about; or
- (h) either Party becomes subject to an Order or applicable Legal Requirement requiring such Party to cause such Designated Smart Contract to take or refrain from taking any action or requiring such Party to take or refrain from taking any action with respect to any of the Blockchain Tokens of such Party that are subject to this Agreement, in each case, which it is not within the power of such Party to comply with in light of the nature of the Designated Smart Contracts; *provided, however*, that to trigger this clause ‘(g)’ pursuant to an applicable Legal Requirement, a Party must obtain, and share with the other Party, from a reputable law firm of 15 lawyers or more in the jurisdiction of the relevant Legal Requirement a written legal opinion to the effect that both: (i) such Legal Requirement applies; and (ii) such Legal Requirement requires the specified action or inaction.

3.2 Handling of Material Adverse Exception Events.

- (a) *Exception Notice.* If either Party becomes aware that there is a Material Adverse Exception Event, such Party (the “***Sending Party***”) shall deliver or cause to be delivered to the other Party (the “***Receiving Party***”) a written notice (an “***Exception Notice***”):
 - (i) certifying that the Sending Party believes in good faith that there is or has been a Material Adverse Exception Event;
 - (ii) describing in reasonable detail the events, facts, circumstances and reasons forming the

basis of such belief;

- (iii) if so desired by the Sending Party, describing in reasonable detail a proposal by the Sending Party of the actions to be taken, the agreements to be entered into, and the remedies to be sought by the Parties in response to the Material Adverse Exception Event an “*Exception Handling Proposal*”; and
 - (iv) including copies of any written evidence or other material written information, and summaries of any other evidence, relevant to, and material for the consideration of, the Material Adverse Exception Event and the other matters referred to in the Exception Notice.
- (b) *Exception Standstill*. During the period starting on the date of delivery of an Exception Notice and ending at the time an Exception Handling Determination is made (the “*Standstill Period*”), the Parties shall: (i) safeguard, set aside and hold in trust for the Parties any Blockchain Tokens that may have been received as a result of the Material Adverse Exception Event as described in the Exception Notice; and (ii) refrain from using the Deal Management Technologies in a manner that would reasonably be expected to be affected by, or would further the effects of or fail to mitigate the damages caused by, the Material Adverse Exception Event as described in the Exception Notice.
- (c) *Determination of Exception Handling*. The term “*Exception Handling Determination*” means a determination by either: (i) mutual written consent signed by the Parties; or (ii) the final resolution of a Dispute in accordance with Section 4.2, as to: (A) the existence or non-existence of a Material Adverse Exception Event and (B) if a Material Adverse Exception Event has been determined to exist, the actions to be taken, the agreements to be entered into, and the remedies to be sought in response thereto. Each of the Parties shall act in accordance with the Exception Handling Determination. If any amendment to this Agreement is required by the Exception Handling Determination, the Parties shall promptly engage legal counsel to draft such amendment for execution by the Parties.

- 3.3** Key Management. Each Party is responsible for maintaining access to and securing against access by third parties any ‘wallet’ or private keys to be used by such Party in connection with this Agreement and the transactions contemplated thereby, including the use of such private keys to sign this Agreement and to execute transactions on the applicable Deal Management Technologies as may be required under this Agreement. Each Party assumes all risk of loss of access to or theft, misappropriation, unauthorized access or other exploitation of the foregoing by third parties. Each Party hereby acknowledges and accepts that if the foregoing occurs, the Security(ies) Purchase may nevertheless be executed and such Party may nevertheless receive Blockchain Tokens at the address controlled by such private keys and be unable to transact in such Blockchain Tokens or may have such Blockchain Tokens misappropriated, or may otherwise suffer damages in connection with this Agreement and the transactions contemplated hereby, and each Party hereby assumes all such risks and waives and releases all rights and remedies against the other Party, and MetaLeX, that may otherwise exist in connection with such losses.

4. Miscellaneous

- 4.1** Governing Law. This Agreement shall be governed by and construed under the internal laws of the Governing Jurisdiction, regardless of the laws that might otherwise govern under applicable principles of conflicts of laws.

- 4.2** Dispute Resolution. All Disputes shall be resolved in accordance with the Dispute Resolution Method.
- 4.3** Notices. All notices and other communications required or permitted pursuant to this Agreement shall be in writing and shall be deemed effectively given upon the earlier of: (i) personal delivery to the Party to be notified; or (ii) on the third business day after being sent, if sent in accordance with the **contactDetails** (set during the Adoption Procedures) of the Party to be notified and the sending party preserves clear and convincing evidence (such as a certified mail receipts, if the **contactDetails** included a physical mailing address that was used for the notice, or such as timestamped data records if the **contactDetails** included an email or digital messaging address that was used for the notice).
- 4.4** Amendment; Waiver. This Agreement may be amended and provisions may be waived (either generally or in a particular instance and either retroactively or prospectively), only with the written consent of both of the Parties, including as stated in Section 3.2(c) herein. No waiver of any provision hereunder shall be deemed a waiver of any subsequent breach or default of the same or any other provision of this Agreement, unless so stated in writing by the waiving Party.
- 4.5** Severability. Any term or provision of this Agreement that is found invalid or unenforceable in any situation in any jurisdiction shall not affect the validity or enforceability of the remaining terms and provisions hereof or the validity or enforceability of the offending term or provision in any other situation or in any other jurisdiction. If a final judgment of a court of competent jurisdiction declares that any term or provision hereof is invalid or unenforceable, the parties hereto agree that the court making such determination shall have the power to limit such term or provision, to delete specific words or phrases, or to replace any invalid or unenforceable term or provision with a term or provision that is valid and enforceable and that comes closest to expressing the intention of the invalid or unenforceable term or provision, and this Agreement shall be enforceable as so modified. In the event such court does not exercise the power granted to it in the prior sentence, the parties hereto agree to replace such invalid or unenforceable term or provision with a valid and enforceable term or provision that will achieve, to the extent possible, the economic, business and other purposes of such invalid or unenforceable term or provision.
- 4.6** Entire Agreement. This Agreement, together with the other written agreements expressly referred to herein (including the Security(ies)) constitutes the entire agreement and understanding of the parties with respect to the subject matter hereof, and supersedes any and all prior negotiations, correspondence, representations, warranties, agreements, understandings, duties or obligations between or involving the parties with respect to the subject matter hereof.
- 4.7** Further Assurances. At any time or from time to time after the Security(ies) Purchase, the parties shall cooperate with one another, and, at the other's request, each party shall execute and deliver any further instruments or documents and take all such further actions as such other Party may reasonably request in order to carry out the intent of this Agreement.
- 4.8** Delays or Omissions. No delay or omission to exercise any right, power, or remedy accruing to any party under this Agreement, upon any breach or default of any other party under this Agreement, shall impair any such right, power, or remedy of such non-breaching or non-defaulting party, nor shall it be construed to be a waiver of or acquiescence to any such breach or default, or to any similar breach or default thereafter occurring, nor shall any waiver of any single breach or default be deemed a waiver of any other breach or default theretofore or thereafter occurring. Any waiver, permit, consent or approval of any kind or character on the part of any party of any breach

or default under this Agreement, or any waiver on the part of any party of any provisions or conditions of this Agreement, must be in writing and shall be effective only to the extent specifically set forth in such writing. All remedies, whether under this Agreement or by law or otherwise afforded to any party, shall be cumulative and not alternative.

4.9 Signature; Counterparts. This Agreement may be executed in any number of counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Counterparts may be delivered via facsimile, electronic mail or other transmission method, including Blockchain Systems records of private key signatures, and any counterpart so delivered shall be deemed to have been duly and validly delivered and be valid and effective for all purposes, including that the parties shall be entitled to rely on any such electronic signature for the purposes of any electronic signature laws of the Governing Jurisdiction.

4.10 Successors and Assigns. The terms and conditions of this Agreement shall inure to the benefit of and be binding upon the respective successors and assigns of the parties hereto and express beneficiaries hereof. MetaLeX shall be a third-party beneficiary of the provisions of this Agreement that relate to MetaLeX, including the representations and warranties set forth in Section 2 and the provisions of Section 3 and Exhibit D.

4.11 Rules of Construction.

- (a) *Gender; Etc.* For purposes of this Agreement, whenever the context requires: the singular number shall include the plural, and vice versa; the masculine gender shall include the feminine and neuter genders; the feminine gender shall include the masculine and neuter genders; and the neuter gender shall include the masculine and feminine genders.
- (b) *Ambiguities.* The Parties hereto agree that any rule of construction to the effect that ambiguities are to be resolved against the drafting Party shall not be applied in the construction or interpretation of this Agreement.
- (c) *No Limitation.* As used in this Agreement, the words “include,” “including,” “such as” and variations thereof, shall not be deemed to be terms of limitation, but rather shall be deemed to be followed by the words “without limitation.” The word “or” shall mean the ‘non-exclusive’ “or” (e.g., if x and y are propositions, then “x or y is true” will be true where x is true but y is false, y is true but x is false, and both x and y are true).
- (d) *References.* Except as otherwise indicated, all references in this Agreement to “Sections,” “Schedules” and “Exhibits” are intended to refer to Sections of this Agreement and Schedules and Exhibits to this Agreement.
- (e) *Hereof.* The terms “hereof,” “herein,” “hereunder,” “hereby” and “herewith” and words of similar import will, unless otherwise stated, be construed to refer to this Agreement as a whole and not to any particular provision of this Agreement.
- (f) *Captions/Headings.* The captions, headings and similar labels contained in this Agreement are for convenience of reference only, shall not be deemed to be a part of this Agreement and shall not be referred to in connection with the construction or interpretation of this Agreement.
- (g) *person.* The term “person” refers to any natural born or legal person, entity, governmental body or incorporated or unincorporated association, partnership or joint venture.

- (h) *Blockchain Finalization.* Wherever this Agreement calls for a certain action to be completed on the Designated Blockchain System, such action must be “Finalized” to have the intended legal effect hereunder. “*Finalization*” or “*Finalized*” means, with respect to a transaction, operation or state on a Designated Blockchain System, that: (a) such transaction, operation or state (or the results or record thereof, which may include state roots or calldata committed to Ethereum or another “layer-1/L1” Blockchain System by a “layer-2/L2” Blockchain System) has been recorded in a block of the Designated Blockchain System (and, if such Designated Blockchain System is a “layer-2/L2” Blockchain System, has additionally been committed to Ethereum or another applicable “layer-1/L1” Blockchain System); and (b) with respect to blocks on Ethereum, such block has been fully finalized in accordance with the checkpoint finalization algorithm of Ethereum.
- (i) *Smart Contract Deposits.* References to depositing assets into or with or inside a Smart Contract or assets being held by a Smart Contract refer to the Parties directly or indirectly effecting transactions on a Blockchain System such that the Smart Contract in question has certain controls over the relevant asset (e.g. that transfers of such assets can then be effected by calling certain functions on such Smart Contract).
- (j) *Decimal Precision and Truncation.* All token values in the smart contracts referred to herein are represented as uint256 integers with 18-decimal-place precision (10^{18}). Percentages, multipliers and rates are stored with 4-decimal-place precision (10^4). Precision of mathematic operations will be normalized to 18 decimals of precisions (10^{18}) and any operations exceeding that will be truncated.

5. Defined Terms

5.1 “*Adoption Procedures*” means that this Agreement has been entered into by or on behalf of the Parties, as follows:

- (a) the Company, by calling or causing to be called the `allocate()` function of the Round Manager Smart Contract with reference to the Agreement Template, has created or caused to be created a data structure representing and setting forth the details of this Agreement (the “*Registered Deal Data*”) in the Agreement Registry Smart Contract, and the Agreement Registry Smart Contract has stored a unique agreementId associated with that data structure (such uniquely identifiable data structure, the “*Registered Deal*”);
- (b) the Company has electronically signed this Agreement with the Company’s private key by calling or causing to be called the `signContractWithEscrow()` function of the Round Manager Smart Contract with reference to the Agreement Template, Registered Deal, and Registered Deal Data;
- (c) the Investor, by calling or causing to be called the `submitEOI()` function of the Round Manager Smart Contract and has added or cause to be added to the Registered Deal Data any necessary details regarding the Investor that are required by the Agreement Template that were not previously supplied by the Company; and
- (d) the Investor has electronically signed this Agreement with the Investor’s private key by calling or causing to be called the `signContractFor()` function of the Round Manager Smart Contract with reference to the Agreement Template, Registered Deal, and Registered Deal Data.

5.2 The “*Registered Deal Data*” means the specific data used to parameterize the Agreement Template and must include at least the following information:

- (a) as the `globalValues` variable of the Registered Deal, a data structure setting forth the following data, which shall correspond to the data fields specified in the `globalFields` variable of the Agreement Template:
 - (i) the amount of U.S. dollar equivalents (e.g., units of USDC or another stablecoin) being paid to purchase each Security;
 - (ii) the amount of U.S. dollars intended to serve as the valuation of the Company for determining conversion of the Security(ies);
 - (iii) optionally, a secret `bytes32` variable set by the Company in order to restrict who may sign this Agreement as an Investor;
 - (iv) the name of the jurisdiction whose law will govern this Agreement (the “*Governing Jurisdiction*”), as the `governingLaw` string variable;
 - (v) the string “`bindingArbitration`,” the string “`courtResolution`” or another string specifying an alternative dispute resolution, as the `disputeResolutionMethod` string variable;
- (b) as the `partyValues` variables of the Registered Deal, data structures setting forth the following data about the Parties, which shall correspond to the applicable data fields specified in the `partyFields` variable of the Agreement Template:
 - (i) a blockchain address of the Company (the “*Company Blockchain Address*”), the legal name of the Company, details of where the Company can be contacted for purposes of giving notices under this Agreement, the entity type of the Company, the jurisdiction of incorporation of the Company, and
 - (ii) a blockchain address of the Investor (the “*Investor Blockchain Address*”), the legal name of the Investor, details of where the Investor can be contacted for purposes of giving notices under this Agreement, and, if the Investor is an entity, the entity type of the Investor and the jurisdiction of incorporation of the Investor;
 - (iii) the `contactDetails` setting forth electronic or mailing addresses for the Company and the Investor for purposes of receiving legal notices.
- (c) the Certificate Token(s) and the Purchase Amount Tokens have both been deposited into the Round Manager Smart Contract.

5.3 “*Agreement Registry Smart Contract*” means the official MetaLeX deployment of `CyberAgreementRegistry.sol` on the Designated Blockchain System, being the Smart Contract at address `0xa9E808B8eCBB60Bb19abF026B5b863215BC4c134` on the Designated Blockchain System.

5.4 “*Agreement Template*” means a data structure stored in the Agreement Registry Smart Contract

setting forth (as its `legalContractUri` string variable) an IPFS URI of this Agreement (the “*Legal Template*”), a template ID for unique identification of the Legal Template, and (as its `globalFields` variable and `partyFields` variables) a specification of the types of data (such as party names) needed to fill in the details of the Legal Template in order to create a legal agreement between particular parties.

5.5 “*Blockchain*” means a distributed data structure consisting of hashlinked sets (‘blocks’) of transactions that is directly or indirectly produced, maintained and/or secured by the automated consensus of a network of independent nodes operating a byzantine-fault-tolerant protocol.

5.6 “*Blockchain System*” means the combination of:

- (a) a Blockchain; and
- (b) a network of one or more devices operating software clients or software applications that jointly or individually store, validate, process transactions with respect to, update, resolve forks with respect to or otherwise maintain, validate, read *from*, store data with respect to, create public proofs with respect to, or write to such Blockchain.

5.7 “*Blockchain Tokens*” means any virtual currency, token, or other unit of account or medium of exchange that is implemented exclusively or primarily on a Blockchain System, regardless of whether transferable, non-transferable, fungible or non-fungible.

5.8 “*Consensus Attack*” means an attack that: (A) is undertaken by or on behalf of a person or group that controls a preponderance of the means of block production on the Designated Blockchain System or Ethereum; and (B) has the actual or intended effect of: (1) reversing any transaction made to or by any Designated Smart Contract, including any “double spend” attack having or intended to have such effect; or (2) preventing inclusion in blocks or Confirmation of any transaction made to or by any Designated Smart Contract, including any “censorship attack,” “transaction withholding attack” or “block withholding attack” having or intended to have such effect.

5.9 “*Designated Blockchain System*” means the Blockchain System selected by the Parties for executing and performing this Agreement and the Security(ies) Purchase. Such Blockchain System shall include the relevant Round Manager Smart Contract selected by the Parties for this Agreement and the Security(ies) Purchase, and may be Ethereum or an Ethereum “layer-2”/“L2” such as Arbitrum, Base, Optimism, or ZKsync.

5.10 “*Designated Smart Contracts*” means the Round Manager Smart Contract, Agreement Registry Smart Contract and any other Smart Contracts constituting an instance of all or any portion of the MetaLeX Protocol that are used in connection with the execution, delivery, or performance of this Agreement or the transactions contemplated by this Agreement.

5.11 “*Dispute*” means any dispute, suit, action or other Legal Proceeding arising out of or based upon this Agreement or the matters contemplated by this Agreement.

5.12 “*Dispute Resolution Method*” means:

- (a) if the value of the `disputeResolutionMethod` variable referred to in [Section 5.2\(a\)\(v\)](#) is “`bindingArbitration`”, the dispute resolution procedures set forth on [Exhibit B](#);

- (b) if the value of the `disputeResolutionMethod` variable referred to in Section 5.2(a)(v) is “`courtResolution`”, the dispute resolution procedures set forth on Exhibit C; and
 - (c) if the value of the `disputeResolutionMethod` variable referred to in Section 5.2(a)(v) sets forth or refers to another dispute resolution procedure, such other dispute resolution procedure.
- 5.13** “*Ethereum*” means, at any time, the canonical Blockchain System of the Ethereum Mainnet ‘mainnet’, as recognized by at least a majority of the validators running correct versions of the go-Ethereum client (‘geth’) then being operated in good faith in the ordinary course of the network.
- 5.14** “*Legal Proceeding*” means any private or governmental action, suit, litigation, arbitration, claim, proceeding (including any civil, criminal, administrative, investigative or appellate proceeding), hearing, inquiry, audit, examination or investigation commenced, brought, conducted or heard by or before, or otherwise involving, any court or other governmental entity or any arbitrator or arbitration panel.
- 5.15** “*Legal Requirement*” means any federal, state, local, municipal, foreign or other law, statute, legislation, constitution, principle of common law, resolution, ordinance, code, edict, decree, proclamation, treaty, convention, rule, regulation, ruling, directive, pronouncement, requirement, specification, determination, decision, opinion or interpretation issued, enacted, adopted, passed, approved, promulgated, made, implemented or otherwise put into effect by or under the authority of any governmental body.
- 5.16** “*MetaLeX*” means MetaLeX Labs, Inc., a Delaware corporation.
- 5.17** “*MetaLeX Protocol*” means the Smart Contract and Blockchain Systems source code at <https://github.com/MetaLex-Tech> and its repositories.
- 5.18** “*MetaLeX Web App*” means <https://www.metalex.tech/>, <https://www.app.metalex.tech/> and all subpages.
- 5.19** “*MetaLeX Web App Terms of Service*” means the most current version of the terms of service of the MetaLeX Web App, typically published at <https://github.com/MetaLex-Tech/publicDocs/tree/main/MetaLeX%20Legal%20Docs> as well as on the MetaLeX Web App.
- 5.20** “*Order*” means any restraining order, preliminary or permanent injunction, stay or other order, writ, injunction, judgment or decree that either: (a) is issued by a court of competent jurisdiction, or (b) arises by operation of applicable law as if issued by a court of competent jurisdiction, including, in the case of clause ‘(b)’ an automatic stay imposed by applicable law upon the filing of a petition for bankruptcy.
- 5.21** “*Parties*” means the Company and the Investor.
- 5.22** “*Round Manager Smart Contract*” means the instance of `RoundManager.sol` deployed by or on behalf of the Company.
- 5.23** “*Security(ies) Purchase*” has the meaning set forth in Section 1.1.
- 5.24** “*Smart Contract*” means any executable bytecode (commonly known as ‘smart contracts’)

deployed to a Blockchain System for operation by node operators running validators, sequencers or similar network operators on such Blockchain System.

EXHIBIT A

SECURITIES BEING SOLD

- The Simple Agreement for Future Equity (SAFE) set forth as an Exhibit hereto.
- The Warrant to Purchase Tokens set forth as an Exhibit hereto.

EXHIBIT B

BINDING CONFIDENTIAL ARBITRATION

- (a) To the extent that, notwithstanding clause ‘(c)’ of this Exhibit B, the use of courts of law or equity is required (e.g., to enforce an arbitral award), the Parties hereby (i) irrevocably and unconditionally submit to the jurisdiction of the relevant courts of the Governing Jurisdiction for the purpose of any Dispute, (ii) agree not to commence any suit, action or other proceeding arising in connection with or based upon this Agreement or the matters contemplated by this Agreement except before the above-referenced courts, and (iii) waive, and agree not to assert, by way of motion, as a defense, or otherwise, in any such suit, action or proceeding, any claim that it is not subject personally to the jurisdiction of the above-referenced courts, that its property is exempt or immune from attachment or execution, that the suit, action or proceeding is brought in an inconvenient forum, that the venue of the suit, action or proceeding is improper or that this Agreement or the subject matter hereof or thereof may not be enforced in or by such court.
- (b) Each Party will bear its own costs in respect of any Disputes.
- (c) Unless otherwise agreed in a written agreement signed by both Parties, all Disputes shall be resolved by confidential, binding arbitration to be seated in the Governing Jurisdiction and conducted in the English language by a panel of three arbitrators pursuant to the rules of the International Chamber of Commerce (the “**Rules**”). The arbitrators shall be appointed in accordance with the procedures set out in the Rules. The award or decision of a majority of the arbitrators shall be final and binding upon the Parties and the Parties expressly waive any right under the laws of any jurisdiction to appeal or otherwise challenge the award, ruling or decision of such majority. The judgment of any award or decision may be entered in any court having competent jurisdiction to the extent deemed reasonably necessary by the Party prevailing in the Arbitration, and the prevailing Party shall have all rights of a judgment creditor as to such Arbitration award in such jurisdiction. Except as provided in the preceding sentence, no Party shall (or shall permit its representatives to) commence, continue or pursue any Dispute in any court; provided, however, that each Party shall be entitled to seek (in accordance with clause ‘(a)’ of this Exhibit B) a preliminary injunction, temporary restraining order or similar provisional relief to prevent threatened or ongoing breaches of this Agreement or to provisionally enforce specifically the terms and provisions of this Agreement, this being in addition to any other remedy to which each Party is entitled at law or in equity.
- (d) EACH PARTY HEREBY WAIVES ITS RIGHTS TO A JURY TRIAL OF ANY CLAIM OR CAUSE OF ACTION BASED UPON OR ARISING OUT OF THIS AGREEMENT OR THE SUBJECT MATTER HEREOF. THE SCOPE OF THIS WAIVER IS INTENDED TO BE ALL-ENCOMPASSING OF ANY AND ALL DISPUTES THAT MAY BE FILED IN ANY COURT AND THAT RELATE TO THE SUBJECT MATTER OF ANY OF THE TRANSACTIONS CONTEMPLATED BY THIS AGREEMENT, INCLUDING, WITHOUT LIMITATION, CONTRACT CLAIMS, TORT CLAIMS (INCLUDING NEGLIGENCE), BREACH OF DUTY CLAIMS, AND ALL OTHER COMMON LAW AND STATUTORY CLAIMS. THIS SECTION HAS BEEN FULLY DISCUSSED BY EACH OF THE PARTIES HERETO AND THESE PROVISIONS WILL NOT BE SUBJECT TO ANY EXCEPTIONS. EACH PARTY HERETO HEREBY FURTHER WARRANTS AND REPRESENTS THAT SUCH PARTY HAS REVIEWED THIS WAIVER WITH ITS LEGAL COUNSEL, AND THAT SUCH PARTY KNOWINGLY AND VOLUNTARILY WAIVES ITS JURY TRIAL RIGHTS FOLLOWING CONSULTATION WITH LEGAL COUNSEL.

EXHIBIT C

COURT ADJUDICATION

The Parties hereby (i) irrevocably and unconditionally submit to the jurisdiction of the relevant courts of the Governing Jurisdiction for the purpose of any Dispute, (ii) agree not to commence any suit, action or other proceeding arising in connection with or based upon this Agreement or the matters contemplated by this Agreement except before the above-referenced courts, and (iii) waive, and agree not to assert, by way of motion, as a defense, or otherwise, in any such suit, action or proceeding, any claim that it is not subject personally to the jurisdiction of the above-referenced courts, that its property is exempt or immune from attachment or execution, that the suit, action or proceeding is brought in an inconvenient forum, that the venue of the suit, action or proceeding is improper or that this Agreement or the subject matter hereof or thereof may not be enforced in or by such court.

EXHIBIT D

METALEX TERMS, LICENSE, DISCLAIMERS

This legal template and all associated applications, Smart Contracts (including the Designated Smart Contracts), and software code (including the MetaLeX Protocol) and all the other Deal Management Technology (collectively, the “*MetaLeX Intellectual Property*”) are, unless otherwise indicated, the sole intellectual property of MetaLeX and are delivered on an as-is, where-is basis, without representation, warranty, guarantee, assurances or advice of any kind, except as otherwise set forth herein. Except as otherwise provided herein, in the MetaLeX Web App Terms of Service, or at <https://github.com/MetaLex-Tech/>, no licenses are granted with respect to any MetaLeX Intellectual Property. Subject to your compliance with the foregoing and all other applicable terms and policies, MetaLeX hereby grants you a limited, non-exclusive, non-sublicensable, non-transferable, non-assignable license to use, access, and integrate with this Agreement, the Agreement Template, and the Designated Smart Contracts, solely through the MetaLeX Web App and only in compliance with all applicable terms and policies. Except as expressly licensed herein, in the MetaLeX Web App Terms of Service, or at <https://github.com/MetaLex-Tech/>, you must not use, access, integrate with, modify, translate, create derivative works of, reverse engineer, or otherwise exploit any MetaLeX Intellectual Property. MetaLeX reserves all rights, title, and interest (including the right to enforce any such rights) not expressly granted herein, in the MetaLeX Web App Terms of Service, or at <https://github.com/MetaLex-Tech/>.

Though the Company and each other securities issuer issuing and managing securities through the MetaLeX Intellectual Property is the sole holder of all administrative, managerial and operational authorities with respect to the relevant Smart Contracts used by the Company or that other particular issuer, the MetaLeX Intellectual Property is currently in beta and MetaLeX retains unilateral upgrade authority over certain Smart Contracts to keep them up to date with changes to the MetaLeX Smart Contract protocol. MetaLeX will not utilize such upgrade authority for the purpose of assisting a particular issuer with its administration of its relationship with its securities holders, but solely for general protocol upgrades or to handle protocol-wide security emergencies during beta testing. The sole method of opting-out of MetaLeX-imposed upgrades to the relevant Smart Contracts with respect to an already issued Certificate Token will be by the Company or other relevant securities issuer voiding the relevant Certificate Token and separately issuing its own Blockchain Token representing the Security(ies) or changing to a book-entry system of tracking Security(ies) ownership, which the Company may do at any time in its sole discretion.

MetaLeX makes no representations, warranties, guarantees, or assurances regarding the quality or sufficiency of the MetaLeX Intellectual Property, the Deal Management Technologies, or the MetaLeX Web App or any other application or software, or their compliance with any law in any jurisdiction. The Parties are solely responsible for determining the quality, fitness for purpose, and lawfulness of the foregoing for any particular purpose in any jurisdiction.

This Agreement and the Deal Management Technologies are provided as templates only and do not constitute financial, investment, or other professional advice. MetaLeX does not endorse or recommend any specific investment strategy or the exchange of any particular Blockchain Tokens. The Parties are advised to consult with financial advisors, investment professionals, or other experts to assess the financial implications and risks of engaging in token exchanges or any related activities. MetaLeX disclaims any liability for financial decisions made based on the use or interpretation of this Agreement or any of the Deal Management Technologies.

MetaLeX does not assume responsibility for the contents of, or the consequence of using the MetaLeX Intellectual Property or any Blockchain System or Smart Contracts. MetaLeX does not owe you any attorney-client confidentiality, privilege, fiduciary, or other duties. Before using any of these forms, you should

consider consulting with a lawyer licensed in the relevant jurisdiction(s).

The MetaLeX Web Application provides a non-exclusive graphical user interface to assist the Parties with configuring, deploying and using the relevant Smart Contracts and entering into and performing their respective obligations under this Agreement (*see* 'Adoption Procedures' above). Certain details (such as selection of the relevant Agreement Template associated with this Agreement) are pre-configured on the MetaLeX Web Application for convenience of the Parties and represent MetaLeX's opinions of many users' likely preferences, notwithstanding that other configurations of the Smart Contracts are possible. **Please review all fields in the MetaLeX Web Application carefully to ensure you wish to agree to them, including the pre-filled fields.** The terms and conditions of the MetaLeX Web Application are provided separately on the MetaLeX Web Application itself and apply in addition to these Terms, License and Disclaimers.

Each Party acknowledges and agrees:

- (a) it had sufficient opportunity to review the source code of each Designated Smart Contracts and any applicable parameters, dependencies, oracles, interfaces, and other software and materials relevant thereto (the "*Source Code*");
- (b) it is sufficiently sophisticated in understanding the Source Code and the relevant technology generally or has consulted with a third party with such sufficient technical sophistication; and
- (c) it understands the functionality, limitations, and risks of the Source Code for its intended uses and compliance with this Agreement, and that it is entering into this Agreement with full knowledge and acknowledgment thereof.

EXHIBIT E
FORM OF SAFE

THIS SAFE AND THE CERTIFICATE TOKEN MAY BE SUBJECT TO ANY OR ALL OF THE RESTRICTIVE LEGENDS SET FORTH AT THE END OF THIS SAFE. PLEASE CHECK THE “LEGENDS” METADATA FIELD OF THE CERTIFICATE TOKEN FOR THE CURRENTLY APPLICABLE RESTRICTIVE LEGENDS.

SAFE
(Simple Agreement for Future Equity)

THIS CERTIFIES THAT in exchange for the payment by the Investor of the Purchase Amount pursuant to a Cyber-Securities Purchase Agreement entered into by the Investor and the Company (the “*Purchase Agreement*”), the Company issues to the Investor the right to certain shares of the Company’s Capital Securities, subject to the terms described below.

This SAFE is a certificated security (if the Company is formed in the United States, as defined in the Uniform Commercial Code (UCC) § 8-102(a)(4)) represented by a non-fungible blockchain token issued by the Company (the “*Certificate Token*”). The Certificate Token is intended to function as a security certificate (if the Company is formed in the United States, as defined in UCC §8-102(a)(16)) representing this SAFE.

This SAFE has been modified from one of the forms available at <http://ycombinator.com/documents> to accommodate the representation of the SAFE as the Certificate Token. A redline showing the changes is available at the following link:

<https://beige-just-flyingfish-108.mypinata.cloud/ipfs/bafybeicxix6dxlz2mq4e42mvscvxbyp756zuq47xrzf3eiuucx6pmqfoa>

No endorsement, approval, or investment from Y-Combinator is implied.

The Certificate Token was issued by the Company’s instance of the MetaLeX certificated security token protocol at <https://github.com/MetaLex-Tech/cybercorps-contracts/>, including an instance of `CyberCertPrinter.sol` (such instance, the “*CyberCertPrinter Smart Contract*”). Specific details of this SAFE are stored in a mapping of the `CertificateDetails` struct to the `tokenId` of the Certificate Token in the memory of the CyberCertPrinter Smart Contract (the “*Mapping*”), including the following details providing the meanings of certain capitalized terms herein:

“*Investor*” means the individual or entity identified by the value of the `investorName` variable stored in the Mapping, and, if an entity, the values of the `investorType` and `investorJurisdiction` variables stored in the Mapping.

“*Company*” means the entity identified by the values of the `cyberCORPName`, `cyberCORPJurisdiction`, and `cyberCORPType` variables stored in the Mapping.

“*Purchase Amount*” means an amount of U.S. dollars equal to the value of the `investmentAmountUSD` variable stored in the Mapping.

“*Post-Money Valuation Cap*” means an amount of U.S. dollars equal to the value of the `issuerUSDValuationAtTimeofInvestment` variable stored in the Mapping.

“*Governing Jurisdiction*” means the jurisdiction identified by the value of the `governingJurisdiction` variable stored in the `legalDetails` variable stored in the Mapping.

“*Company Address*” means the mailing and/or electronic address stored in the value of the `contactDetails`

variable stored in the value of the `companyDetails` variable stored in the Mapping.

“*Investor Address*” means the mailing and/or electronic address stored in the value of the `contactDetails` variable stored in the value of the `investorDetails` variable stored in the Mapping.

See Section 2 for certain additional defined terms.

The Company has certain administrative controls over the Certificate Token, including controls over the transferability of the Certificate Token and the power to set the status of the Certificate Token to “void” for any reason or no reason, in its sole discretion. In the event that the Company sets the status of the Certificate Token to “void” the Company will either issue the Investor a new Certificate Token or a paper certificate representing this SAFE, or will provide for representation of this SAFE in book-entry form on the books and records of the Company. In the event of a persistent “contentious hardfork” (as commonly understood in the blockchain industry) of any of the relevant blockchain systems that results in copies of the Certificate Token on each such blockchain system, the Company shall determine which copy of the Certificate Token is canonical in its sole and absolute discretion, and the Company may void, and shall not be required to honor any claims on, or afford any rights to, the copy of the Certificate Token determined by the Company to be non-canonical. In the event that the blockchain system determined by the Company to be canonical following a contentious hardfork itself subsequently undergoes its own contentious hardfork, this provision shall likewise apply to such contentious hardfork, *mutatis mutandis*.

1. Events

- (a) Equity Financing. If there is an Equity Financing before the termination of this SAFE, on the initial closing of such Equity Financing, this SAFE will automatically convert into the greater of: (1) the number of Standard Preferred Capital Securities equal to the Purchase Amount divided by the lowest price per Standard Preferred Capital Security; or (2) the number of SAFE Preferred Capital Securities equal to the Purchase Amount divided by the SAFE Price.

In connection with the automatic conversion of this SAFE into Standard Preferred Capital Securities or SAFE Preferred Capital Securities, the Investor will execute and deliver to the Company all of the transaction documents related to the Equity Financing; provided, that such documents (i) are the same documents to be entered into with the purchasers of Standard Preferred Capital Securities, with appropriate variations for the SAFE Preferred Capital Securities if applicable, and (ii) have customary exceptions to any drag-along applicable to the Investor, including (without limitation) limited representations, warranties, liability and indemnification obligations for the Investor.

- (b) Liquidity Event. If there is a Liquidity Event before the termination of this SAFE, the Investor will automatically be entitled (subject to the liquidation priority set forth in Section 1(d) below) to receive a portion of Proceeds, due and payable to the Investor immediately prior to, or concurrent with, the consummation of such Liquidity Event, equal to the greater of (i) the Purchase Amount (the “Cash-Out Amount”) or (ii) the amount payable on the number of Common Capital Securities equal to the Purchase Amount divided by the Liquidity Price (the “Conversion Amount”). If any of the Company’s securityholders are given a choice as to the form and amount of Proceeds to be received in a Liquidity Event, the Investor will be given the same choice, provided that the Investor may not choose to receive a form of consideration that the Investor would be ineligible to receive as a result of the Investor’s failure to satisfy any requirement or limitation generally applicable to the Company’s securityholders, or under any applicable laws.

Notwithstanding the foregoing, in connection with a Change of Control intended to qualify as a

tax-free reorganization, the Company may reduce the cash portion of Proceeds payable to the Investor by the amount determined by its board of directors in good faith for such Change of Control to qualify as a tax-free reorganization for income tax purposes, provided that such reduction (A) does not reduce the total Proceeds payable to such Investor and (B) is applied in the same manner and on a pro rata basis to all securityholders who have equal priority to the Investor under Section 1(d).

- (c) Dissolution Event. If there is a Dissolution Event before the termination of this SAFE, the Investor will automatically be entitled (subject to the liquidation priority set forth in Section 1(d) below) to receive a portion of Proceeds equal to the Cash-Out Amount, due and payable to the Investor immediately prior to the consummation of the Dissolution Event.
- (d) Liquidation Priority. In a Liquidity Event or Dissolution Event, this SAFE is intended to operate like standard non-participating Preferred Capital Securities. The Investor's right to receive its Cash-Out Amount is:
 - (i) Junior to payment of outstanding indebtedness and creditor claims, including contractual claims for payment and convertible promissory notes (to the extent such convertible promissory notes are not actually or notionally converted into Capital Securities);
 - (ii) On par with payments for other SAFEs and/or Preferred Capital Securities, and if the applicable Proceeds are insufficient to permit full payments to the Investor and such other SAFEs and/or Preferred Capital Securities, the applicable Proceeds will be distributed pro rata to the Investor and such other SAFEs and/or Preferred Capital Securities in proportion to the full payments that would otherwise be due; and
 - (iii) Senior to payments for Common Capital Securities.

The Investor's right to receive its Conversion Amount is (A) on par with payments for Common Capital Securities and other SAFEs and/or Preferred Capital Securities who are also receiving Conversion Amounts or Proceeds on a similar as-converted to Common Capital Securities basis, and (B) junior to payments described in clauses (i) and (ii) above (in the latter case, to the extent such payments are Cash-Out Amounts or similar liquidation preferences).

- (e) Termination. This SAFE will automatically terminate (without relieving the Company of any obligations arising from a prior breach of or non-compliance with this SAFE) immediately following the earliest to occur of: (i) the issuance of Capital Securities to the Investor pursuant to the automatic conversion of this SAFE under Section 1(a); or (ii) the payment, or setting aside for payment, of amounts due the Investor pursuant to Section 1(b) or Section 1(c).

2. Definitions

“Capital Securities” means the shares of capital stock, capital shares, membership interests, or similar equity securities of the Company, as the case may be, depending on the company's entity type and jurisdiction of formation, including the Common Capital Securities and the Preferred Capital Securities.

“Change of Control” means (i) a transaction or series of related transactions in which any “person” or “group” (within the meaning of Section 13(d) and 14(d) of the Securities Exchange Act of 1934, as amended), becomes the “beneficial owner” (as defined in Rule 13d-3 under the Securities Exchange Act of 1934, as amended), directly or indirectly, of more than 50% of the outstanding voting securities of the Company having the right to vote for the election of members of the Company's board of directors, (ii) any reorganization,

merger or consolidation of the Company, other than a transaction or series of related transactions in which the holders of the voting securities of the Company outstanding immediately prior to such transaction or series of related transactions retain, immediately after such transaction or series of related transactions, at least a majority of the total voting power represented by the outstanding voting securities of the Company or such other surviving or resulting entity or (iii) a sale, lease or other disposition of all or substantially all of the assets of the Company.

“Common Capital Securities” means the common shares, ordinary shares, shares of common stock, membership interests that are pro rata and pari passu to one another and do not have preferences over any other such membership interests, or similar equity securities of the Company, as the case may be, depending on the Company’s entity type and jurisdiction of formation.

“Company Capitalization” means the sum (on an as-converted to Common Capital Securities basis, and without double-counting, in each case), immediately prior to the Equity Financing, of:

- (a) all Capital Securities issued and outstanding;
- (b) all Converting Securities;
- (c) all (i) issued and outstanding Options and (ii) Promised Options; and
- (d) the Unissued Option Pool, except that any increase to the Unissued Option Pool in connection with the Equity Financing shall only be included to the extent that the number of Promised Options exceeds the Unissued Option Pool prior to such increase.

“Converting Securities” includes this SAFE and other convertible securities issued by the Company, including but not limited to: (i) other SAFEs; (ii) convertible promissory notes and other convertible debt instruments; and (iii) convertible securities that have the right to convert into Capital Securities.

“Direct Listing” means the Company’s initial listing of its Common Capital Securities (other than Common Capital Securities not eligible for resale under Rule 144 under the Securities Act) on a national securities exchange by means of an effective registration statement on Form S-1 filed by the Company with the SEC that registers existing Capital Securities of the Company for resale, as approved by the Company’s board of directors. For the avoidance of doubt, a Direct Listing will not be deemed to be an underwritten offering and will not involve any underwriting services.

“Dissolution Event” means (i) a voluntary termination of operations, (ii) a general assignment for the benefit of the Company’s creditors or (iii) any other liquidation, dissolution or winding up of the Company (excluding a Liquidity Event), whether voluntary or involuntary.

“Dividend Amount” means, with respect to any date on which the Company pays a dividend on its outstanding Common Capital Securities, the amount of such dividend that is paid per Common Capital Security multiplied by (x) the Purchase Amount divided by (y) the Liquidity Price (treating the dividend date as a Liquidity Event solely for purposes of calculating such Liquidity Price).

“Equity Financing” means a bona fide transaction or series of transactions with the principal purpose of raising capital, pursuant to which the Company issues and sells Preferred Capital Securities at a fixed valuation, including but not limited to, a pre-money or post-money valuation.

“Initial Public Offering” means the closing of the Company’s first firm commitment underwritten initial public offering of Common Capital Securities pursuant to a registration statement filed under the Securities Act.

“Liquidity Capitalization” is calculated as of immediately prior to the Liquidity Event, and (without double-counting, in each case calculated on an as-converted to Common Capital Securities basis):

Includes all Capital Securities issued and outstanding;

Includes all (i) issued and outstanding Options and (ii) to the extent receiving Proceeds, Promised Options;

Includes all Converting Securities, other than any SAFEs and other convertible securities (including without limitation Preferred Capital Securities) where the holders of such securities are receiving Cash-Out Amounts or similar liquidation preference payments in lieu of Conversion Amounts or similar “as-converted” payments; and

Excludes the Unissued Option Pool.

“Liquidity Event” means a Change of Control, a Direct Listing or an Initial Public Offering.

“Liquidity Price” means the price per security equal to the Post-Money Valuation Cap divided by the Liquidity Capitalization.

“Options” includes options, restricted stock awards or purchases, RSUs, SARs, warrants or similar securities, vested or unvested.

“Preferred Capital Securities” means the preferred shares, preference shares, shares of preferred stock, membership interests that have liquidation priorities over or other similar preferences over ordinary membership interests, or similar equity securities of the Company, as the case may be, depending on the Company’s entity type and jurisdiction of formation.

“Proceeds” means cash and other assets (including without limitation stock consideration) that are proceeds from the Liquidity Event or the Dissolution Event, as applicable, and legally available for distribution.

“Promised Options” means promised but ungranted Options that are the greater of those (i) promised pursuant to agreements or understandings made prior to the execution of, or in connection with, the term sheet or letter of intent for the Equity Financing or Liquidity Event, as applicable (or the initial closing of the Equity Financing or consummation of the Liquidity Event, if there is no term sheet or letter of intent), (ii) in the case of an Equity Financing, treated as outstanding Options in the calculation of the price per Standard Preferred Capital Security, or (iii) in the case of a Liquidity Event, treated as outstanding Options in the calculation of the distribution of the Proceeds.

“SAFE” means an instrument containing a future right to Capital Securities, similar in form and content to this instrument, purchased by investors for the purpose of funding the Company’s business operations. References to “this SAFE” mean this specific instrument.

“SAFE Preferred Capital Securities” means the Preferred Capital Securities to be issued to the Investor in an Equity Financing, having the identical rights, privileges, preferences and restrictions as the Standard Preferred Capital Securities, other than with respect to: (i) the per-share liquidation preference and the initial conversion price for purposes of price-based anti-dilution protection, which will equal the SAFE Price; and (ii) the basis for any dividend rights, which will be based on the SAFE Price

“SAFE Price” means the price per security equal to the Post-Money Valuation Cap divided by the Company Capitalization.

“Standard Preferred Capital Security” means the Preferred Capital Securities issued to the investors investing new money in the Company in connection with the initial closing of the Equity Financing.

“Unissued Option Pool” means all Capital Securities that are reserved, available for future grant and not subject to any outstanding Options or Promised Options (but in the case of a Liquidity Event, only to the extent Proceeds are payable on such Promised Options) under any equity incentive or similar Company plan.

3. Company Representations

- (a) The Company is duly organized, validly existing and in good standing under the laws of its jurisdiction of formation, and has the power and authority to own, lease and operate its properties and carry on its business as now conducted.
- (b) The execution, delivery and performance by the Company of this SAFE is within the power of the Company and has been duly authorized by all necessary actions on the part of the Company (subject to Section 3(d)). This SAFE constitutes a legal, valid and binding obligation of the Company, enforceable against the Company in accordance with its terms, except as limited by bankruptcy, insolvency or other laws of general application relating to or affecting the enforcement of creditors’ rights generally and general principles of equity. To its knowledge, the Company is not in violation of (i) its current certificate of incorporation, bylaws, memorandum and articles of association, operating agreement or equivalent governing documents, as the case may be, depending on the Company’s entity type and jurisdiction of formation, (ii) any material statute, rule or regulation applicable to the Company or (iii) any material debt or contract to which the Company is a party or by which it is bound, where, in each case, such violation or default, individually, or together with all such violations or defaults, could reasonably be expected to have a material adverse effect on the Company.
- (c) The performance and consummation of the transactions contemplated by this SAFE do not and will not: (i) violate any material judgment, statute, rule or regulation applicable to the Company; (ii) result in the acceleration of any material debt or contract to which the Company is a party or by which it is bound; or (iii) result in the creation or imposition of any lien on any property, asset or revenue of the Company or the suspension, forfeiture, or nonrenewal of any material permit, license or authorization applicable to the Company, its business or operations.
- (d) No consents or approvals are required in connection with the performance of this SAFE, other than: (i) the Company’s entity governance approvals; (ii) any qualifications or filings under applicable securities laws; and (iii) necessary entity governance approvals for the authorization of Capital Securities issuable pursuant to Section 1.
- (e) To its knowledge, the Company owns or possesses (or can obtain on commercially reasonable terms) sufficient legal rights to all patents, trademarks, service marks, trade names, copyrights, trade secrets, licenses, information, processes and other intellectual property rights necessary for its business as now conducted and as currently proposed to be conducted, without any conflict with, or infringement of the rights of, others.

4. Investor Representations

- (a) The Investor has full legal capacity, power and authority to execute and deliver this SAFE and to perform its obligations hereunder. This SAFE constitutes a valid and binding obligation of the Investor, enforceable in accordance with its terms, except as limited by bankruptcy, insolvency or other laws of general application relating to or affecting the enforcement of creditors’ rights

generally and general principles of equity.

- (b) The Investor is not a “U.S. person” as that term is defined under Rule 902 of the Securities Act, is not entering into this SAFE for the account of, or benefit of, any “U.S. person,” has submitted and shall submit to the Company such further assurances of such status as may be reasonably requested by the Company and (i) agrees to assign, sell or transfer this SAFE and the Certificate Token only in accordance with the provisions of Regulation S, pursuant to registration under applicable securities laws, or pursuant to an available exemption from registration and agrees not to engage in hedging transactions with regard to this SAFE unless in compliance with applicable securities laws, (ii) agrees that this SAFE and the Certificate Token shall contain a legend to the effect that transfer is prohibited except in accordance with the provisions of Regulation S, pursuant to registration under applicable securities laws or pursuant to an available exemption from registration and that hedging transactions involving this Agreement and the Tokens may not be conducted unless in compliance with applicable securities laws, and (iii) agrees that the Company may refuse to consent to any assignment of this Agreement not made in accordance with the provisions of Regulation S, pursuant to registration under applicable securities laws or pursuant to an available exemption from registration.
- (c) The Investor hereby undertakes and covenants to the Company that the Investor will promptly provide to the Company and/or its service providers all such information, confirmations, certifications, know-your-customer information and other information as is required of the Investor, the Company, or such service providers by law or applicable regulation in connection with the issuance and allotment of the SAFE Preference Shares, pursuant to the automatic conversion of this SAFE under Section 1(a). The Investor further agrees and acknowledges that the Company and/or its service providers may rely on the automatic conversion provisions contained herein in lieu of any signed share application forms or similar subscription documents solely for the purposes of effecting any allotment filings required by law and conversion of this SAFE..

5. Miscellaneous

- (a) Any provision of this SAFE may be amended, waived or modified by written consent of the Company and either (i) the Investor or (ii) the majority-in-interest of all then-outstanding SAFEs with the same “Post-Money Valuation Cap” and “Discount Rate” as this SAFE (and SAFEs lacking one or both of such terms will be considered to be the same with respect to such term(s)), provided that with respect to clause (ii): (A) the Purchase Amount may not be amended, waived or modified in this manner, (B) the consent of the Investor and each holder of such SAFEs must be solicited (even if not obtained), and (C) such amendment, waiver or modification treats all such holders in the same manner. “*Majority-in-interest*” refers to the holders of the applicable group of SAFEs whose SAFEs have a total Purchase Amount greater than 50% of the total Purchase Amount of all of such applicable group of SAFEs.
- (b) All notices and other communications required or permitted pursuant to this SAFE shall be in writing and shall be deemed effectively given upon the earlier of: (i) personal delivery to the party to be notified; or (ii) on the third business day after being sent, if sent to the Company Address or Investor Address, as applicable and the sending party preserves clear and convincing evidence (such as a certified mail receipts, if the Company Address or Investor Address, as applicable, includes a physical mailing address that was used for the notice, or such as timestamped data records if the Company Address or Investor Address, as applicable included an email or digital messaging address that was used for the notice).

- (c) The Investor is not entitled, as a holder of this SAFE, to vote or be deemed a holder of Capital Securities for any purpose other than tax purposes, nor will anything in this SAFE be construed to confer on the Investor, as such, any rights of a Company stockholder or rights to vote for the election of directors or on any matter submitted to Company stockholders, or to give or withhold consent to any entity governance action or to receive notice of meetings, until shares have been issued on the terms described in Section 1. However, if the Company pays a dividend on outstanding Common Capital Securities (that is not payable in Common Capital Securities) while this SAFE is outstanding, the Company will pay the Dividend Amount to the Investor at the same time.
- (d) Neither this SAFE nor the rights in this SAFE are transferable or assignable, by operation of law or otherwise, by either party without the prior written consent of the other; provided, however, that this SAFE and/or its rights may be assigned without the Company's consent by the Investor (i) to the Investor's estate, heirs, executors, administrators, guardians and/or successors in the event of Investor's death or disability, or (ii) to any other entity who directly or indirectly, controls, is controlled by or is under common control with the Investor, including, without limitation, any general partner, managing member, officer or director of the Investor, or any venture capital fund now or hereafter existing which is controlled by one or more general partners or managing members of, or shares the same management company with, the Investor. Transferability of the Certificate Token requires the prior written consent of the Company, which may be granted by the Company making changes on the applicable blockchain system to enable the Certificate Token to become transferable on such blockchain system. Unless the Certificate Token has been voided, the Investor shall not make any transfer or assignment of this SAFE or any rights under this SAFE without transferring the Certificate Token to the same transferee or assignee. In the case of a transfer or assignment of the SAFE by operation of law or that is otherwise involuntary and does not entail transfer of the Certificate Token, or with respect to which the transferee or assignee does not wish to or cannot accept the Certificate Token, the Investor and the transferee or assignee shall notify the Company as promptly as far as reasonably practicable in advance of (if possible) or (if advance notice is not possible) as promptly as reasonably practicable after such transfer or assignment, and, for the avoidance of doubt, the Company may void the Certificate Token, issue a new Certificate Token, switch this SAFE to book-entry-only, or take any other reasonable good faith action to avoid any duplication of this SAFE and the Certificate Token or any rights hereunder or thereunder and to ensure the accuracy of the books and records of the Company and outstanding Certificate Tokens in light of the transfer or assignment.
- (e) In the event any one or more of the provisions of this SAFE is for any reason held to be invalid, illegal or unenforceable, in whole or in part or in any respect, or in the event that any one or more of the provisions of this SAFE operate or would prospectively operate to invalidate this SAFE, then and in any such event, such provision(s) only will be deemed null and void and will not affect any other provision of this SAFE and the remaining provisions of this SAFE will remain operative and in full force and effect and will not be affected, prejudiced, or disturbed thereby.
- (f) All rights and obligations hereunder will be governed by the laws of the Governing Jurisdiction, without regard to the conflicts of law provisions of such jurisdiction.
- (g) The parties acknowledge and agree that for income tax purposes this SAFE is, and at all times has been, intended to be characterized as stock, and more particularly as common stock (including for purposes of Sections 304, 305, 306, 354, 368, 1036 and 1202 of the Internal Revenue Code of 1986, as amended, if applicable). Accordingly, the parties agree to treat this SAFE consistent with the foregoing intent for all income tax purposes (including, without limitation, on their

respective tax returns or other informational statements).

- (h) This SAFE may be executed in any number of counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Counterparts may be delivered via facsimile, electronic mail or other transmission method, including blockchain systems records of private key signatures, and any counterpart so delivered shall be deemed to have been duly and validly delivered and be valid and effective for all purposes, including that the parties shall be entitled to rely on any such electronic signature for the purposes of any electronic signature laws of the Governing Jurisdiction.
- (i) All token values in the smart contracts referred to herein are represented as uint256 integers with 18-decimal-place precision (10^{18}). Percentages, multipliers and rates are stored with 4-decimal-place precision (10^4). Precision of mathematic operations will be normalized to 18 decimals of precisions (10^{18}) and any operations exceeding that will be truncated.

[Restrictive Legends follow.]

RESTRICTIVE LEGENDS

RIA COMPLIANCE LEGEND. THE CERTIFICATE TOKEN MAY NOT BE USED TO EFFECT A TRANSFER OR TO OTHERWISE FACILITATE A CHANGE IN BENEFICIAL OWNERSHIP OF THIS SAFE WITHOUT THE PRIOR CONSENT OF THE COMPANY.

REGULATION S LEGEND. THIS SAFE AND THE CERTIFICATE TOKEN HAVE NOT BEEN, AND WILL NOT BE, REGISTERED UNDER ANY SECURITIES LAWS, INCLUDING THOSE OF THE UNITED STATES OF AMERICA. THIS SAFE AND THE CERTIFICATE TOKEN ARE ONLY BEING OFFERED FOR SALE OUTSIDE THE UNITED STATES OF AMERICA TO PERSONS OTHER THAN U.S. PERSONS IN OFFSHORE TRANSACTIONS MEETING THE REQUIREMENTS OF REGULATION S UNDER THE SECURITIES ACT (“REGULATION S”). AS USED HEREIN, THE TERMS “OFFSHORE TRANSACTIONS” AND “U.S. PERSON” HAVE THE MEANINGS GIVEN TO THEM IN REGULATION S. THIS AGREEMENT. THIS SAFE AND THE CERTIFICATE TOKEN ARE NOT PERMITTED TO BE OFFERED OR SOLD (INCLUDING OPENING A SHORT POSITION IN SUCH SECURITIES) IN THE UNITED STATES OR TO U.S. PERSONS AS DEFINED BY RULE 902(k) ADOPTED UNDER THE ACT, UNLESS THEY ARE REGISTERED UNDER THE SECURITIES ACT OF 1933 (THE “ACT”), OR AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE ACT IS AVAILABLE. YOU MAY RESELL SUCH SECURITIES ONLY PURSUANT TO AN EXEMPTION FROM REGISTRATION UNDER THE ACT OR OTHERWISE IN ACCORDANCE WITH THE PROVISIONS OF REGULATION S OF THE ACT, OR IN TRANSACTIONS EFFECTED OUTSIDE OF THE UNITED STATES PROVIDED YOU DO NOT SOLICIT (AND NO ONE ACTING ON YOUR BEHALF SOLICITS) PURCHASERS IN THE UNITED STATES OR OTHERWISE ENGAGE(S) IN SELLING EFFORTS IN THE UNITED STATES AND PROVIDED THAT HEDGING TRANSACTIONS INVOLVING THESE SECURITIES MAY NOT BE CONDUCTED UNLESS IN COMPLIANCE WITH THE ACT AND ALL OTHER APPLICABLE SECURITIES LAWS. A HOLDER OF THE SECURITIES WHO IS A DISTRIBUTOR, DEALER, SUB-UNDERWRITER OR OTHER SECURITIES PROFESSIONAL, IN ADDITION, CANNOT RESELL THE SECURITIES TO A U.S. PERSON AS DEFINED BY RULE 902(k) OF REGULATION S UNLESS THE SECURITIES ARE REGISTERED UNDER THE ACT OR AN EXEMPTION FROM REGISTRATION UNDER THE ACT IS AVAILABLE.

CONTENTIOUS HARDFORK LEGEND. IN THE EVENT THAT THE BLOCKCHAIN SYSTEM ON WHICH THE CERTIFICATE TOKEN WAS ORIGINALLY ISSUED UNDERGOES A PERSISTENT “CONTENTIOUS HARDFORK” (AS COMMONLY UNDERSTOOD IN THE BLOCKCHAIN INDUSTRY, RESULTING IN TWO INDEPENDENT BLOCKCHAIN SYSTEMS THAT ARE BOTH REASONABLY EXPECTED TO HAVE INDEPENDENT PERSISTENT COMMERCIAL VALUE), NO COPY OF THE CERTIFICATE TOKEN MAY BE OFFERED, SOLD, OR OTHERWISE TRANSFERRED, PLEDGED, OR HYPOTHECATED UNTIL THE COMPANY HAS DETERMINED, IN ITS SOLE AND ABSOLUTE DISCRETION, WHICH BLOCKCHAIN SYSTEM (AND WHICH CERTIFICATE TOKENS) TO TREAT AS CANONICAL, AND THEN ONLY THE CERTIFICATE TOKEN THUS DETERMINED BY THE COMPANY TO BE CANONICAL MAY BE OFFERED, SOLD, OR OTHERWISE TRANSFERRED, PLEDGED, OR HYPOTHECATED (TO THE EXTENT OTHERWISE PERMITTED). IN THE EVENT THAT THE BLOCKCHAIN SYSTEM DETERMINED BY THE COMPANY TO BE CANONICAL FOLLOWING A CONTENTIOUS HARDFORK ITSELF SUBSEQUENTLY UNDERGOES ANOTHER CONTENTIOUS HARDFORK, THIS RESTRICTIVE LEGEND SHALL LIKEWISE APPLY TO SUCH OTHER CONTENTIOUS HARDFORK, MUTATIS MUTANDIS.

EXHIBIT F

FORM OF WARRANT TO PURCHASE TOKENS

THIS TOKEN WARRANT AND THE CERTIFICATE TOKEN MAY BE SUBJECT TO ANY OR ALL OF THE RESTRICTIVE LEGENDS SET FORTH AT THE END OF THIS TOKEN WARRANT. PLEASE CHECK THE “LEGENDS” METADATA FIELD OF THE CERTIFICATE TOKEN FOR THE CURRENTLY APPLICABLE RESTRICTIVE LEGENDS.

WARRANT TO PURCHASE TOKENS

This certifies that, for good and valuable consideration paid to the Company, the Holder is entitled, subject to the terms and conditions of this Token Warrant to Purchase Tokens (this “*Token Warrant*”), to purchase at the applicable Warrant Exercise Price (as defined below), at any time prior to the Expiration Date (as defined below), up to each Holder’s Portion of Tokens (as defined below), upon delivery to the Company of a duly executed exercise notice in the form attached hereto as Exhibit A (the “*Exercise Notice*”) and simultaneous payment of an amount equal to the Warrant Exercise Price or, if permitted, by an election to net exercise as set forth in Section 2.5 hereof.

This Token Warrant is a certificated security (as defined in the Uniform Commercial Code (UCC) § 8-102(a)(4)) represented by a non-fungible blockchain token issued by the Company (the “*Certificate Token*”). The Certificate Token is intended to function as a security certificate (as defined in UCC §8-102(a)(16)) representing this Token Warrant.

This Token Warrant has been modified from the a16z Token Warrant Template to accommodate the representation of the Token Warrant as the Certificate Token, various blockchain-based automation techniques, and the possibility that a16z is not the counterparty or in the relevant financing round. A redline showing the changes is available at the following link:

<https://beige-just-flyingfish-108.mypinata.cloud/ipfs/bafybeicozqhw66bob7rymfxxcst3ygzwf5g7tfrayugrjwzbpsof4majwe>

No endorsement, approval, or investment from a16z is implied.

The Certificate Token was issued by the Company’s instance of the MetaLeX certificated security token protocol at <https://github.com/MetaLex-Tech/cybercorps-contracts/>, including an instance of *CyberCertPrinter.sol* (such instance, the “*CyberCertPrinter Smart Contract*”). Specific details of this Token Warrant are stored in a mapping of the *CertificateDetails* struct to the *tokenID* of the Certificate Token in the memory of the *CyberCertPrinter Smart Contract* (including data incorporated by reference from an instance of the *tokenWarrantExtension.sol* smart contract in the ‘*certificateExtensionData*’ field) (the “*Mapping*”), including the defined terms referring to the Mapping in Section 1 of this Token Warrant.

The Company has certain administrative controls over the Certificate Token, including controls over the transferability of the Certificate Token and the power to set the status of the Certificate Token to “void” for any reason or no reason, in its sole discretion. In the event that the Company sets the status of the Certificate Token to “void” the Company will either issue the Holder a new Certificate Token or a paper certificate representing this Token Warrant, or will provide for representation of this Token Warrant in book-entry form on the books and records of the Company. In the event of a persistent “contentious hardfork” (as commonly understood in the blockchain industry) of any of the relevant blockchain systems that results in copies of the Certificate Token on each such blockchain system, the Company shall determine which copy of the Certificate Token is canonical in its sole and absolute discretion, and the Company may void, and shall not be required to honor any claims on, or afford any rights to, the copy of the Certificate Token determined by the Company to be non-canonical. In the event that the blockchain system determined by the Company to be canonical following a contentious hardfork itself subsequently undergoes its own contentious hardfork, this provision

shall likewise apply to such contentious hardfork, *mutatis mutandis*.

1. **DEFINITIONS.** The following definitions shall apply for purposes of this Token Warrant. Note that, depending on the particular parameters selected in the CyberCertPrinter Smart Contract, not all of the defined terms may actually be operative for this Token Warrant.

- 1.1 “**Affiliate**” means, with respect to any specified Person, any other Person who, directly or indirectly, controls, is controlled by, or is under common control with such Person, including without limitation any general partner, managing member, officer, director or trustee of such Person, or any venture capital fund or registered investment company now or hereafter existing that is controlled by one or more general partners, managing members or investment advisers of, or shares the same management company or investment adviser with, such Person, where “**control**” is defined as directly or indirectly possessing the power to direct or cause the direction of the management and policies of the Affiliate, whether through ownership of voting securities, by contract or otherwise.
- 1.2 “**Business Day**” means a weekday on which banks are open for general banking business in San Francisco, California.
- 1.3 “**Capital Securities**” means, with respect to an entity, the shares of capital stock, capital shares, membership interests, or similar equity securities of such entity, as the case may be, depending on the entity’s entity type and jurisdiction of formation, including Common Capital Securities and Preferred Capital Securities of such entity.
- 1.4 “**Common Capital Securities**” means, with respect to an entity, the ordinary shares, common shares, shares of common stock, membership interests that are pro rata and pari passu to one another and do not have preferences over any other such membership interests, or similar equity securities of such entity, as the case may be, depending on the entity’s entity type and jurisdiction of formation.
- 1.5 “**Company**” means the entity identified by the values of the `cyberCORPName`, `cyberCORPJurisdiction`, and `cyberCORPType` variables stored in the Mapping and shall include, in addition to such entity, any corporation or other entity that succeeds to the Company’s obligations under this Token Warrant, whether by permitted assignment, by merger or consolidation or otherwise.
- 1.6 “**Company Address**” means the mailing and/or electronic address identified by the value of the `contactDetails` variable stored in the `companyDetails` variable stored in the Mapping.
- 1.7 “**Company Reserve**” means, with respect to any Token, the aggregate number of such Tokens distributed, reserved for distribution or otherwise Transferred, in a single transaction or series of related transactions, to the Company and any Insiders, which amount shall be no less than the Token Minimum Company Reserve.
- 1.8 “**Deemed Liquidation Event**” means (a) if such term is defined in the Company’s Certificate of Incorporation, as it may be amended from time to time, then the meaning given to it therein, or (b) if it is not defined therein, then (i) a merger or consolidation in which (A) the Company is a constituent party or (B) a subsidiary of the Company is a constituent party and the Company issues its Capital Securities pursuant to such merger or consolidation, except any such merger or consolidation involving the Company or a subsidiary in which the Capital Securities of the Company outstanding immediately prior to such merger or consolidation continue to represent, or are

converted into or exchanged for Capital Securities that represent, immediately following such merger or consolidation, at least a majority, by voting power, of Capital Securities of (1) the surviving or resulting corporation; or (2) if the surviving or resulting corporation is a wholly owned subsidiary of another corporation immediately following such merger or consolidation, the parent corporation of such surviving or resulting corporation; (ii) a transaction or series of transactions in which a Person, or a group of related Persons, acquires from holders of the Capital Securities of the Company representing more than fifty percent (50%) of the outstanding voting power of the Company; or (iii) the sale, lease, transfer, exclusive license or other disposition, in a single transaction or series of related transactions, by the Company or any subsidiary of the Company of all or substantially all of the assets or intellectual property of the Company and its subsidiaries taken as a whole, or, if substantially all of the assets or intellectual property of the Company and its subsidiaries taken as a whole are held by such subsidiary or subsidiaries, the sale or disposition (whether by merger or otherwise) of one or more subsidiaries of the Company, except where such sale, lease, transfer, exclusive license or other disposition is to the Company or one or more wholly owned subsidiaries of the Company.

- 1.9 “Excluded Tokens”** means, with respect to any Token, (a) Tokens issued or used solely for development, testing or experimental purposes, (b) Tokens that may be created and issued following a Token Launch pursuant to staking, rewards or inflationary or dilutive controls; provided, that any such Tokens dilute all Tokens equally and (i) are issued in accordance with the governance terms of the Protocol and not in the sole discretion of the Company, any Token Affiliate or any Insider, and (ii) with respect to any staking or rewards process, Holders are allowed to participate in any such staking or rewards process on the same basis as other participants (any such Tokens, “*Autonomously Generated Tokens*”), and (c) non-fungible Tokens issued in arms’ length transactions in the ordinary course of business; provided that no such disposition shall be to the Company, any Token Affiliate or any Insider unless Holders are entitled to participate in any such disposition on the same basis as other participants.
- 1.10 “Exercise Price”** means an amount of U.S. dollars identified by the value of the `exercisePrice` variable stored in the Mapping.
- 1.11 “Exercise Price Method”** means the exercise method identified by the value of the `exercisePriceMethod` variable stored in the Mapping. If the Exercise Price is to be paid for each Token purchased hereunder, such value shall be `perToken`. If the Exercise Price is to be paid for each exercise of the Token Warrant regardless of the number of Tokens for which the Token Warrant is being exercised, such value shall be `perWarrant`.
- 1.12 “Expiration Date”** means the earlier of (a) the Latest Expiration Time, (b) with respect to any specific Token, 60 days following the receipt by Holder of notice of any initial Token Structuring Event that has occurred with respect to such Token or (c) the date the Company and other Token Issuers irrevocably and affirmatively decide not to develop any Token and notify the Holders of the same.
- 1.13 “Founder”** means each employee, independent contractor, service provider, director, officer, or holder of equity securities of the Company or Token Issuer who: (a) made material contributions to the Company’s or a Token Issuer’s intellectual property (including business plans or strategies) or material business relationships; (b) owns as of the date of this Token Warrant at least five percent of the fully diluted Capital Securities of the Company or Token Issuer (or other equity securities potentially convertible into or exercisable for such Capital Securities) or may be entitled (directly or through one or more contracts or agreements) to 2.5% or more of the Total Network Tokens; and

(c) has been identified as or would otherwise reasonably be considered to be a founder of the Company or a Token Issuer.

1.14 “Governing Jurisdiction” means the jurisdiction identified by the value of the `governingJurisdiction` variable stored in the value of the `legalDetails` variable stored in the Mapping.

1.15 “Holder” means the individual or entity identified by the value of the `investorName` variable stored in the Mapping, and, if an entity, the values of the `investorType` and `investorJurisdiction` variables stored in the Mapping.

1.16 “Holder Address” means the mailing and/or electronic address identified by the value of the `contactDetails` variable stored in the value of the `investorDetails` variable stored in the Mapping.

1.17 “Insider” means any current or former investors, holders of Capital Securities, Founders, employees, officers, directors and advisors or other consultants of the Company and any Token Issuer (if other than the Company).

1.18 “Latest Expiration Time” means the latest possible time (denominated in seconds) at which the Token Warrant can expire and cease to become exercisable, identified by the value of the `latestExpirationTime` variable stored in the Mapping.

1.19 “Parent” shall mean any entity (other than the Company) in an unbroken chain of entities ending with the Company, if each of the entities other than the Company owns securities possessing more than 50% of the total combined voting power of all classes of securities in one of the other entities in such chain.

1.20 “Person” means any individual, corporation, partnership, trust, limited liability company, association or other entity, including any decentralized autonomous organization or other similar decentralized or distributed entity.

1.21 “Portion” means, with respect to each Holder and any Token, such amount of Tokens as shall equal (without double counting):

- (a) if the Token Calculation Method is `equityProRataToTokenSupply` and the `tokenPremiumMultiplier` is greater than one, such Holder’s Pro Rata Portion of the Total Network Tokens *divided by* the `tokenPremiumMultiplier`; or
- (b) if the Token Calculation Method is `equityProRataToCompanyReserve`, such Holder’s Pro Rata Portion multiplied by the Company Reserve.

1.22 “Preferred Capital Securities” means, with respect to an entity, the preferred shares, preference shares, shares of preferred stock, membership interests that have liquidation priorities over or other similar preferences over ordinary membership interests, or similar equity securities of such entity, as the case may be, depending on the entity’s entity type and jurisdiction of formation.

1.23 “Pro Rata Portion” means, with respect to each Holder, the ratio (i) that the number of Common Capital Securities of the Company then held by such Holder, including any Common Capital Securities of the Company issued to such Holder or issuable to such Holder upon conversion of

Preferred Capital Securities of the Company or other outstanding securities of the Company (treating any Simple Agreements for Future Equity or convertible note as having converted at the valuation cap thereof) bears to (ii) the total number of outstanding Common Capital Securities of the Company after giving effect to the conversion or exercise of all outstanding securities into Common Capital Securities of the Company (treating any Simple Agreements for Future Equity or convertible note as having converted at the valuation cap thereof), in each case, as of the initial Token Structuring Event of such Token; *provided, however*, that if the Holder has assigned, conveyed or Transferred this Token Warrant to another Person as permitted by Section 8.2 (a “*Permitted Transferee*”), in no event shall the aggregate Portion of the original Holder and such Permitted Transferees exceed the Portion that would have been attributable to the original Holder if the Warrant had not been assigned, conveyed or Transferred.

- 1.24 “Protocol”** means any blockchain-based network protocol, platform or application (including any blockchain-based network of smart contracts or smart contract participants) created, developed, operated or managed by, or based upon, or incorporating material portions of any intellectual property developed, owned or exclusively licensed by the Company or any Token Affiliate.
- 1.25 “Subsidiary”** shall mean any entity (other than the Company) in an unbroken chain of entities beginning with the Company, if each of the entities other than the last entity in the unbroken chain owns securities possessing more than 50% of the total combined voting power of all classes of securities in one of the other entities in such chain.
- 1.26 “Token(s)”** means any tokens, coins or other digital assets created and issued by the Company, or any Token Affiliate or Founder (if, with respect to a Founder, such asset relates to a Protocol or utilizes Company intellectual property and is created either (i) within twelve-months of the public launch of the Protocol or (ii) within twelve-months of such date that the Founder shall no longer be providing services to the Company) or their respective successors or assigns (collectively, “*Token Issuers*”). For the avoidance of doubt, this excludes any Excluded Tokens.
- 1.27 “Token Affiliate”** means (i) any Affiliate of the Company, (ii) any Subsidiary or Parent of the Company, or (iii) any other Person (including any foundation formed by or with the cooperation of the Company) that (a) receives a license or assignment of any material intellectual property from the Company (including, without limitation, any trademarks owned by the Company) and uses such intellectual property to effect a sale or other issuance of Tokens (as such term is defined below); (b) uses intellectual property that the Company has released under any free software or open source license to effect a sale or other issuance of Tokens, and any officer or key employee of the Company is rendering (or has rendered) material services to such Person, or (if an entity) any officers or key employees of the Company owns a direct or indirect interest in such Person; or (c) is designated or otherwise granted rights by the Company or an Affiliate to such Person to administrate, manage or operate (in lieu of the Company or such Affiliate) any Protocol.
- 1.28 “Token Calculation Method”** means the method of calculating the number of Tokens the Holder is entitled to that is identified in the value of the `tokenCalculationMethod` variable of the Mapping. If such number of Tokens is to be calculated based on the Holder’s pro rata equity ownership of the Company relative to the Total Network Tokens, such value shall be `equityProRataToTokenSupply`. If such number of Tokens is to be calculated based on the Holder’s pro rata equity ownership of the Company relative to a portion of the Total Network Tokens reserved for the Company and its personnel and investors (the ‘Company Reserve’ as defined in this Token Warrant), such value shall be `equityProRataToCompanyReserve`.

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- 1.29 “Token Launch”** means, with respect to any Token, the date such Tokens are first issued to non-Insiders (other than any Token Affiliate).
- 1.30 “Token Minimum Company Reserve”** means an amount of Tokens equal to: (a) the minimum percentage of Total Network Tokens to be included in the Company Reserve identified by the value stored in the `minCompanyReserve` variable of the Mapping, if applicable; of (b) the Total Network Tokens.
- 1.31 “Token Valuation Premium”** means the premium of the valuation of the Total Network Tokens over the valuation of the Company identified by the value stored in the `tokenPremiumMultiplier` variable of the Mapping, if applicable.
- 1.32 “Total Network Tokens”** means, with respect to any Token, the total number of Tokens ever to be minted, generated or created over the lifetime of the applicable Protocol (including Tokens purchasable pursuant to this Token Warrant).
- 1.33 “Token Structuring Event”** means, with respect to any Token, the date such Tokens are minted, generated or created, if ever, and available for issuance, including any Token Launch.
- 1.34 “Transfer”** means sell, loan, collateralize, sponsor, distribute, issue or otherwise dispose of or encumber.
- 1.35 “Unlocking Cliff Percentage”** means the percentage of the Tokens purchasable pursuant to this Token Warrant that unlock (i.e., cease to be Transfer-restricted under Section 3.2) at the Unlocking Cliff, identified by the value of the `unlockingCliffPercentage` variable stored in the Mapping.
- 1.36 “Unlocking Cliff Period”** means the number of time units of the Unlocking Interval Type from and after the Unlocking Start Time after which some number of Tokens first become unlocked (i.e., cease to be Transfer-restricted under Section 3.2), identified by the value of the `unlockingCliffPeriod` variable stored in the Mapping.
- 1.37 “Unlocking Interval Type”** means the type of time interval defining each Token unlocking event (i.e., event of ceasing to be Transfer-restricted under Section 3.2) within the Unlocking Period, identified by the value of the `UnlockingIntervalType` variable stored in the Mapping, which value may be `secondly` (i.e., each second), `hourly`, `daily`, `monthly`, or `blockly` (i.e., a Token unlock occurs once in each block of the applicable blockchain system).
- 1.38 “Unlocking Period”** means the number of time units of the Unlocking Interval Type from and after the Unlocking Start Time required for all of the Tokens purchasable through this Token Warrant to become fully unlocked (i.e., ceasing to be Transfer-restricted under Section 3.2), identified by the value of the `unlockingPeriod` variable stored in the Mapping.
- 1.39 “Unlocking Start Time”** means the starting time from which the unlock period of the Tokens (i.e., the period of time over which Transfer restrictions under Section 3.2 lapse) is calculated, identified by the value of the `unlockStartTimeType` variable stored in the Mapping (`tokenWarrantTime` for the time that the Token Warrant is entered into, `tgeTime` for the time of the Token Launch, or `setTime` for a particular specified time) and the value of the `unlockStartTime` variable stored in the Mapping.

1.40 “Warrant” means this Token Warrant and any warrant(s) delivered in substitution or exchange therefor, as provided herein.

1.41 “Warrant Exercise Price” means, with respect to any Tokens and any exercise of this Token Warrant, (a) if the Exercise Price Method is **perWarrant**, the Exercise Price (in the aggregate, to purchase that number of Tokens for which any Holder exercises this Token Warrant in that exercise), and (b) if the Exercise Price Method is **perToken**, the Exercise Price *multiplied by* the number of Tokens for which this Token Warrant is being exercised in that exercise.

2. EXERCISE.

2.1 Method of Exercise. Subject to the terms and conditions of this Token Warrant, each Holder may exercise this Token Warrant with respect to any Token, at any time or from time to time, on any Business Day on or after the initial Token Structuring Event for such Token and before the Expiration Date, for up to such Holder’s Portion of Tokens; provided, that, if such Holder’s Portion is increased pursuant to Section 3.4 following any Expiration Date (a “**Post-Expiration Increase**”), this Token Warrant may nevertheless be exercised with respect to such Post-Expiration Increase from time to time, on any Business Day on or prior to 5:00 p.m. Pacific Time on the date that is 10 years following the Issue Date. Subject to the immediately preceding sentence, this Token Warrant may be exercised any number of times by each Holder to provide such Holder the opportunity to purchase up to each Holder’s Portion of Tokens following each instance that new Tokens are minted, generated or created following the initial Token Structuring Event for such Token, and may be separately exercised with respect to each separate Token. This Token Warrant shall be exercised by submitting a copy of the Exercise Notice, duly executed by each respective Holder, and by payment in a form specified in Section 2.2 hereof of an amount equal to the Warrant Exercise Price, if applicable or, an election to net exercise this Token Warrant as provided in Section 2.5 hereof for the number of Tokens to be acquired in connection with such exercise.

2.2 Form of Payment. Payment for each Holder’s Portion of the Tokens upon each exercise may be made by (a) a check payable to the Company’s order, (b) wire transfer of funds to the Company, (c) cancellation of indebtedness of the Company to such Holder, (d) by net exercise as provided in Section 2.5 hereof (e) transfer of U.S. dollar stablecoins acceptable to the Company or (f) any combination of the foregoing.

2.3 Delivery of Tokens. In connection with each exercise pursuant to this Section 2, each exercising Holder will provide to the Company an Exercise Notice specifying one or more network addresses to allocate such Holder’s Tokens to upon such exercise (or otherwise upon the applicable date of delivery, as described herein), and the Company shall deliver, or cause to be delivered, such Tokens to such network address(es). Each Holder may update such network address(es) by providing written notice in accordance with Section 8.5; provided, that the Company need not consider such updated network address(es) to be valid until the Company has confirmed receipt of such notice.

2.4 Restrictions on Exercise. This Token Warrant may not be exercised if the issuance of the Tokens upon such exercise would constitute a violation of any applicable federal or state laws or other regulations, as determined by the Board of Directors of the Company upon the advice of counsel. As a condition to each exercise of this Token Warrant, each exercising Holder shall execute a copy of the Exercise Notice, confirming and acknowledging that the representations and warranties set forth in Section 7 as they apply to such Holder are true and complete as of the date of exercise. In the event that external legal counsel to the Company advises the Company that it is necessary or advisable for regulatory reasons, each exercising Holder shall also be required to deliver, as a condition to exercise,

a verification letter from a qualified third-party verifying that each exercising Holder is not a “U.S. person” under Regulation S promulgated by the United States Securities and Exchange Commission. Each Holder acknowledges that the Company is not obligated, and the Company has not made any determination, to generate Tokens.

2.5 Net Exercise Election.

- (a) Upon each exercise of this Token Warrant and subject to the Transfer Restrictions, each Holder may elect to make such exercise without the payment by such Holder of any additional consideration, by submitting a copy of the Exercise Notice with the net exercise election selected, duly executed by such Holder, for the number of Tokens that is obtained under the following formula:

$$X = Y - (A \div B)$$

where X = the number Tokens to be issued to such Holder pursuant to a net exercise of this Token Warrant effected pursuant to this Section 2.5.

Y = the number of Tokens equal to such Holder’s Portion.

A = the Warrant Exercise Price.

B = the fair market value of one Token, determined at the time of such net exercise as set forth in the last paragraph of this Section 2.5.

- (b) The Company will promptly respond in writing to an inquiry by any Holder as to the then current fair market value of one Token. For purposes of the calculation in Section 2.5(a), the fair market value of one Token shall be determined by the Company’s or Parent’s Board of Directors in good faith.

2.6 Notice of Expiration, Token Structuring Events and Token Launch. The Company further covenants and agrees to provide each Holder with (i) at least sixty (60) days’ notice prior to any Expiration Date, (ii) at least fifteen (15) days’ notice prior to a consummation of any Token Structuring Event by a Token Issuer and (iii) at least fifteen (15) days’ notice prior to a consummation of any Token Launch, which notice shall include (x) in each case, a description of the number of Tokens that have been issued by a Token Issuer during the term of the Warrant and such Holder’s Portion (including the calculation of such Portion) and (y) in the case of clause ‘(ii),’ a description of the Protocol and the Tokens to be issued in such Token Structuring Event.

3. ISSUANCE OF TOKENS.

- 3.1 Date of Issuance.** This Token Warrant shall be deemed to have been exercised immediately prior to the close of business on the date that it is exercised pursuant to the terms of Section 2 above, and the Person entitled to receive the Tokens to be purchased upon such exercise shall be treated for all purposes as the holder of record of such Tokens as of the close of business on such date. As soon as practicable on or after such date, and in any event within two (2) days following such date of exercise, the Company shall issue and deliver, or cause to be issued and delivered, to the network address specific on the Exercise Notice that such Holder delivers to the Company the Tokens purchased upon such exercise.

3.2 Restrictions on Tokens.

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- (a) The Tokens purchasable pursuant to this Token Warrant shall be subject to each of the following restrictions on Transfer: (i) any restrictions on Transfer required by applicable law, as determined by the Board of Directors of the Company in good faith and on the advice of external legal counsel; and (ii) any additional restrictions on Transfer reasonably requested by the Company and approved by the Majority Holders (as defined below). The Tokens purchasable pursuant to this Token Warrant shall initially be restricted from Transfer from the date of this Token Warrant through the end of the Unlocking Period, and shall unlock ratably in accordance with the Unlocking Interval Type during the period beginning from the Unlocking Start Time for an amount of time equal to the Unlocking Period, except that ratable unlocking shall be delayed from the Unlocking Start Time until the end of the Unlocking Cliff Period; *provided, however*, that: (A) the Unlocking Cliff Percentage of the Tokens purchasable pursuant to this Token Warrant shall unlock at the end of the Unlocking Cliff Period; and (B) the Transfer restrictions described in this sentence shall be modifiable pursuant to the preceding clause ‘(i)’ and clause ‘(ii)’, as applicable. The Transfer descriptions in the preceding part of this Section 3.2(a) are referred to herein as the “***Transfer Restrictions***”.
- (b) Notwithstanding anything to the contrary set forth in the preceding clause ‘(a)’ or elsewhere in this Token Warrant: (i) no Transfer Restrictions shall apply to any Holder unless all Tokens that are issued (directly or indirectly) to Insiders are subject to the Transfer Restrictions at least as onerous as those applicable to each Holder; (ii) any discretionary waiver or termination of any Transfer restrictions that are approved by the Board of Directors of the Company or any Token Issuer with respect to any Insider shall apply to each Holder, *pro rata*, based on the number of Tokens held by such Holder; and (iii) except to the extent prohibited by applicable law (determined in accordance with clause (a)(i) above), during any period any Tokens issued pursuant to this Token Warrant are subject to Transfer Restrictions, each Holder may: (A) Transfer any Tokens to any Affiliate of such Holder and (B) exercise the voting and other governance rights linked to such Tokens or deploy them towards staking in accordance with the governance and other rules of the Protocol.
- (c) If the Company or any Token Issuer determines that it is necessary or desirable to impose programmatic Transfer Restrictions on the Tokens, then the Company and the Majority Holders shall work in good faith to identify a mutually agreeable smart contract through which the Transfer Restrictions set forth in this Section 3.2 can be programmatically enforced, provided that such smart contract shall be immutable (or subject to mutual governance by the Company and Majority Holders) and not be controlled by the Company, any Token Issuer or any Affiliate thereof and shall otherwise comply with the terms of this Token Warrant. Notwithstanding the foregoing, no programmatic Transfer Restrictions shall be imposed without the prior written consent of the Majority Holders, which consent shall not be unreasonably withheld. The Company shall have and retain any and all risk of loss of the Tokens arising from programmatic Transfer Restrictions imposed on the Tokens by or on behalf of any Token Issuer, notwithstanding such Holder’s or such Holder’s designated custodian’s obtaining custody and possession of the Tokens.

3.3 Reservation of Tokens. The Company shall reserve, or cause to be reserved, for the benefit of each Holder, and not distribute, sell or encumber, or cause to be not distributed, sold or encumbered, the maximum number of Tokens purchasable under this Token Warrant until this Token Warrant is fully exercised.

3.4 Token Allocation and Distribution. If the Token Calculation Method hereunder is

equityProRataToCompanyReserve, then: (a) with respect to any Tokens that a Token Issuer mints, generates or creates, the Company will, and will cause any Token Issuer, to ensure that no less than an amount of Tokens equal to the Company Reserve is allocated to the Company; and (b) in the event that the Company Reserve for any Token is increased at any time following the initial Token Structuring Event for such Token, then each Holder's Portion with respect to such Token shall be recalculated to take into account such increase. If the Token Calculation Method hereunder is equityProRataToTokenSupply, then in the event that the Total Network Tokens for any Token is increased at any time following the initial Token Structuring Event for such Token, each Holder's Portion with respect to such Token shall be recalculated to take into account such increase.

4. ADDITIONAL COVENANTS.

- 4.1 Token Custodians & Wallet Addresses. If required by any Holder (based on the opinion of Holder's outside legal counsel made available to the Company), prior to the distribution of any Tokens to such Holder, the Company will use reasonable best efforts to partner with a third-party custodian that is a Qualified Custodian under SEC rules (including widely available high quality custody solutions such as Anchorage and Coinbase) so that such custodian will accept and support such Tokens with secure wallet and storage services promptly following the distribution of Tokens pursuant to this Token Warrant, including in accordance with Section 3.2, and Holder shall be entitled to direct any distribution of Tokens pursuant to this Token Warrant to a number of wallet addresses that may be reasonably selected by Holder.
- 4.2 Sybil Attacks & Airdrop Farming. Each Holder and the Company (severally and not jointly) agree to use reasonable efforts to prohibit their respective employees, contractors, Affiliates and the employees and contractors of such Holder's respective Affiliates from creating multiple accounts primarily for the purpose of participating in any retroactive airdrop of Tokens.

5. EFFECT OF REORGANIZATION, CONSOLIDATION OR MERGER.

- 5.1 (a) In case of any recapitalization or reorganization of the Company (including the conversion of the Company into a foundation company) or (b) in case the Company shall consolidate with or merge into one or more other corporations or entities, in each case that is not a Deemed Liquidation Event (each, a "**Reorganization Event**"), if after such Reorganization Event, this Token Warrant is exercisable for Tokens of a corporation or entity other than the Company, then such corporation or entity shall duly execute and deliver to each Holder a supplement hereto acknowledging such corporation's or other entity's obligations under this Token Warrant; and in each such case, the terms of this Token Warrant shall be applicable to Tokens receivable upon the exercise of this Token Warrant after the consummation of such Reorganization Event. The Company shall promptly give each Holder at least ten (10) days' prior written notice of each Reorganization Event.
- 5.2 In the event that a Token Issuer completes a Token Structuring Event while this Token Warrant is outstanding, then this Token Warrant shall become exercisable for each Holder's Portion of such Tokens. The Company covenants and agrees that to the extent that such Token Structuring Event is consummated by any party other than the Company, the Company will, as a condition to any participation in, cooperation with, or transfer or license of rights with respect to, such Token Structuring Event, ensure that the Token Issuer accepts, in writing for the benefit of each Holder, the obligation to issue the applicable Tokens to each Holder upon exercise of this Token Warrant in accordance with the terms hereof.

6. REPRESENTATIONS AND WARRANTIES OF COMPANY. The Company hereby represents and

warrants to Holders as of the Issue Date:

- 6.1 Organization, Good Standing, Corporate Power and Qualification.** The Company is duly formed or incorporated, duly organized, validly existing and in good standing under the laws of its jurisdiction of formation or incorporation and has all requisite corporate power and authority to carry on its business as now conducted and as presently proposed to be conducted. The Company is duly qualified to transact business and is in good standing in each jurisdiction in which the failure to so qualify would have a material adverse effect.
- 6.2 Authorization.** All corporate action required to be taken by the Board of Directors of the Company and the holders of the Company's Capital Securities in order to authorize the Company to enter into this Token Warrant, and to issue any other similar warrants to purchase tokens from the Company, has been taken or will be taken prior to the Issue Date. All action on the part of the officers of the Company necessary for the execution and delivery of this Token Warrant, the performance of all obligations of the Company under this Token Warrant to be performed as of the Issue Date, and the issuance and delivery of this Token Warrant has been taken or will be taken prior to the Issue Date. This Token Warrant, when executed and delivered by the Company, shall constitute valid and legally binding obligations of the Company, enforceable against the Company in accordance with their respective terms except (i) as limited by applicable bankruptcy, insolvency, reorganization, moratorium, fraudulent conveyance, or other laws of general application relating to or affecting the enforcement of creditors' rights generally, or (ii) as limited by laws relating to the availability of specific performance, injunctive relief, or other equitable remedies.
- 6.3 Governmental Consents and Filings.** Assuming the accuracy of the representations made by the Holders in Section 7 of this Token Warrant, no consent, approval, order or authorization of, or registration, qualification, designation, declaration or filing with, any federal, state or local governmental authority is required on the part of the Company in connection with the issuance of the Warrants.
- 6.4 Marketable Title.** Upon delivery of the Tokens upon exercise of the Warrant, Token Issuer shall deliver, and each Holder shall have, good and marketable title to the Tokens, free and clear of all liens, claims, charges and encumbrances of any kind whatsoever. The Tokens purchasable hereunder will be, upon exercise of the Warrant, fully vested and are not subject to any restrictions on transfer that may otherwise bind such Holder, except as set forth in Section 3.2.

7. REPRESENTATIONS AND WARRANTIES OF HOLDER.

In order to induce the Company to issue this Token Warrant to the Holder, the Holder hereby represents and warrants to the Company as follows:

- 7.1 Authorization.** Holder has full power and authority and, with respect to any individual Holder, the capacity to enter into this Token Warrant. This Token Warrant, when executed and delivered by Holder, will constitute valid and legally binding obligations of Holder, enforceable in accordance with their terms, except as limited by applicable bankruptcy, insolvency, reorganization, moratorium, fraudulent conveyance and any other laws of general application affecting enforcement of creditors' rights generally, and as limited by laws relating to the availability of specific performance, injunctive relief or other equitable remedies.
- 7.2 Purchase Entirely for Own Account.** Holder is acquiring this Token Warrant for investment for Holder's own account, not as a nominee or agent, and not with a view to the resale or distribution of any part thereof, and Holder has no present intention of selling, granting any participation in, or

otherwise distributing the same or any part thereof. Holder further represents that Holder does not presently have any contract, undertaking, agreement or arrangement with any Person to sell, transfer or grant participations to such Person or to any third Person, with respect to this Token Warrant or any part hereof. Holder has not been formed for the specific purpose of acquiring this Token Warrant.

7.3 Disclosure of Information. Holder has had an opportunity to discuss the Company's business, management, financial affairs and the terms and conditions of the offering of this Token Warrant with the Company's management.

7.4 Unregistered Securities. Holder understands that this Token Warrant has not been, and will not be, registered under applicable securities laws. Holder acknowledges that the Company has no obligation to register or qualify for resale this Token Warrant. Holder further acknowledges that if an exemption from registration or qualification is available, it may be conditioned on various requirements including, but not limited to, the time and manner of sale, the holding period for this Token Warrant, and on requirements relating to the Company which are outside of Holder's control, and which the Company is under no obligation and may not be able to satisfy.

7.5 7.5 Non-U.S.-Person. Holder is not a "U.S. person" as that term is defined under Rule 902 of the Securities Act, is not entering into this Token Warrant for the account of, or benefit of, any "U.S. person," has submitted and shall submit to the Company such further assurances of such status as may be reasonably requested by the Company and (i) agrees to assign, sell or transfer this Token Warrant and the Certificate Token only in accordance with the provisions of Regulation S, pursuant to registration under applicable securities laws, or pursuant to an available exemption from registration and agrees not to engage in hedging transactions with regard to this Token Warrant unless in compliance with applicable securities laws, (ii) agrees that this Token Warrant and the Certificate Token shall contain a legend to the effect that transfer is prohibited except in accordance with the provisions of Regulation S, pursuant to registration under applicable securities laws or pursuant to an available exemption from registration and that hedging transactions involving this Token Warrant and the Tokens may not be conducted unless in compliance with applicable securities laws, and (iii) agrees that the Company may refuse to consent to any assignment of this Token Warrant not made in accordance with the provisions of Regulation S, pursuant to registration under applicable securities laws or pursuant to an available exemption from registration.

8. GENERAL PROVISIONS.

8.1 Attorneys' Fees. In the event any party is required to engage the services of any attorneys for the purpose of enforcing this Token Warrant, or any provision thereof, the prevailing party shall be entitled to recover its reasonable expenses and costs in enforcing this Token Warrant, including attorneys' fees.

8.2 Transfer. Except as expressly provided hereunder, neither this Token Warrant nor any rights hereunder may be assigned, conveyed or Transferred by a Holder, in whole or in part, without the Company's prior written consent; provided, that, notwithstanding the foregoing, each Holder may assign, convey, or transfer this Token Warrant and/or any rights hereunder to (a) an Affiliate, partner, member, limited partner, retired or former partner, retired or former holder of Capital Securities of such Holder or (b) subject to the Company's prior written consent, which shall not be unreasonably withheld, any other Person; provided further, and, as a condition precedent to the Company's recognition of such transfer, the transferee shall sign an agreement, reasonably satisfactory to the Company, confirming that such transferee shall agree to be bound by each of the terms of the Warrant and re-make the representations and warranties of a Holder to the Company provided for in this Token Warrant. The rights and obligations of the Company and each Holder under this Token

Warrant shall be binding upon and benefit their respective permitted successors, assigns, heirs, administrators and transferees. Transferability of the Certificate Token requires the prior written consent of the Company, which may be granted by the Company making changes on the applicable blockchain system to enable the Certificate Token to become transferable on such blockchain system. Unless the Certificate Token has been voided, the Holder shall not make any transfer or assignment of this Token Warrant or any rights under this Token Warrant without transferring the Certificate Token to the same transferee or assignee. In the case of a transfer or assignment of the Warrant by operation of law or that is otherwise involuntary and does not entail transfer of the Certificate Token, or with respect to which the transferee or assignee does not wish to or cannot accept the Certificate Token, the Holder and the transferee or assignee shall notify the Company as promptly as far as reasonably practicable in advance of (if possible) or (if advance notice is not possible) as promptly as reasonably practicable after such transfer or assignment, and, for the avoidance of doubt, the Company may void the Certificate Token, issue a new Certificate Token, switch this Token Warrant to book-entry-only, or take any other reasonable good faith action to avoid any duplication of this Token Warrant and the Certificate Token or any rights hereunder or thereunder and to ensure the accuracy of the books and records of the Company and outstanding Certificate Tokens in light of the transfer or assignment.

- 8.3 Governing Law.** This Token Warrant shall be governed by and construed under the internal laws of the Governing Jurisdiction, regardless of the laws that might otherwise govern under applicable principles of conflicts of laws.
- 8.4 Headings.** The headings and captions used in this Token Warrant are used only for convenience and are not to be considered in construing or interpreting this Token Warrant. All references in this Token Warrant to Sections and Exhibits shall, unless otherwise provided, refer to sections hereof and exhibits attached hereto, all of which exhibits are incorporated herein by this reference.
- 8.5 Notices.** Unless otherwise provided herein, all notices and other communications required or permitted pursuant to this Token Warrant shall be in writing and shall be deemed effectively given upon the earlier of: (i) personal delivery to the Party to be notified; or (ii) on the third business day after being sent, if sent to the Company Address or Holder Address, as applicable and the sending party preserves clear and convincing evidence (such as a certified mail receipts, if the Company Address or Holder Address, as applicable, includes a physical mailing address that was used for the notice, or such as timestamped data records if the Company Address or Holder Address, as applicable included an email or digital messaging address that was used for the notice).
- 8.6 Amendment; Waiver.** This Token Warrant may be amended and provisions may be waived (either generally or in a particular instance and either retroactively or prospectively), only with the written consent of each of (i) the Company and (ii) the Holders of a majority of the aggregate Portion (the “**Majority Holders**”), provided that such amendment or waiver applies to all Holders in the same fashion.
- 8.7 Severability.** If one or more provisions of this Token Warrant are held to be unenforceable under applicable law, then such provision(s) shall be excluded from this Token Warrant to the extent they are unenforceable and the remainder of this Token Warrant shall be interpreted as if such provision(s) were so excluded and shall be enforceable in accordance with its terms.
- 8.8 Confidentiality.** Each Holder (severally and not jointly) agrees that such Holder and its Affiliates will keep confidential and will not disclose, divulge, or use for any purpose any information obtained from the Company that is marked as confidential or that a reasonable person would understand to be confidential, including without limitation any details regarding a Token, the potential launch of a

Token, the structure of the Token or any potential airdrop of such Token, unless such information (a) is known or becomes known to the public in general (other than as a result of a breach of this Section 8.8 by such Holder or its Affiliate), (b) is or has been independently developed or conceived by such Holder without use of the Company's confidential information, or (c) is or has been made known or disclosed to such Holder by a third party without a breach of any obligation of confidentiality such third party may have to the Company; provided, however, that each Holder may disclose confidential information (i) to its attorneys, accountants, consultants, and other professionals to the extent reasonably necessary to obtain their services in connection with monitoring its rights or obligations under this Token Warrant; or (ii) as may otherwise be required by applicable law, provided that such Holder promptly notifies the Company of such disclosure and takes reasonable steps to minimize the extent of any such required disclosure.

8.9 Entire Agreement. This Token Warrant, the documents referred to herein and all attachments hereto and thereto, together with all the exhibits and schedules hereto and thereto, constitute the entire agreement and understanding of the parties with respect to the subject matter hereof and supersedes any and all prior negotiations, correspondence, warrants, agreements, understandings duties or obligations between the parties with respect to the subject matter hereof.

8.10 Further Assurances. At any time or from time to time after the date hereof, the Company shall cooperate with each Holder, and at the request of such Holder, shall execute and deliver any further instruments or documents and take all such further actions as such Holder may reasonably request in order to carry out the intent of this Token Warrant.

8.11 No Impairment. Except and to the extent waived or consented to by the Holders, or as otherwise permitted under the terms hereof, neither the Company nor any Token Issuer will, by amendment of its corporate documents or through any reorganization, transfer of assets, consolidation, merger, dissolution, issue or sale of securities or any other voluntary action, avoid or seek to avoid the observance or performance of any of the terms to be observed or performed hereunder by the Company or such Token Issuer, but will at all times in good faith assist in the carrying out of all the provisions of this Token Warrant and in the taking of all such action as may be necessary or appropriate in order to protect the rights of the Holders hereunder against impairment.

8.12 Reporting Matters. The parties hereto intend, and the Company will treat, this Token Warrant as an option for applicable tax purposes through and including the initial exercise of this Token Warrant; provided that the foregoing would not apply should the applicable tax laws change in the future in a way that, in the opinion of counsel, would cause the Company's compliance with the foregoing to violate such tax laws.

8.13 Counterparts. This Token Warrant may be executed in any number of counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Counterparts may be delivered via facsimile, electronic mail or other transmission method, including Blockchain Systems records of private key signatures, and any counterpart so delivered shall be deemed to have been duly and validly delivered and be valid and effective for all purposes, including that the parties shall be entitled to rely on any such electronic signature for the purposes of any electronic signature laws of the Governing Jurisdiction.

8.14 Decimal Precision and Truncation. All token values in the smart contracts referred to herein are represented as uint256 integers with 18-decimal-place precision (10^{18}). Percentages, multipliers and rates are stored with 4-decimal-place precision (10^4). Precision of mathematic operations will be normalized to 18 decimals of precisions (10^{18}) and any operations exceeding that will be truncated.

RESTRICTIVE LEGENDS

RIA COMPLIANCE LEGEND. THE CERTIFICATE TOKEN MAY NOT BE USED TO EFFECT A TRANSFER OR TO OTHERWISE FACILITATE A CHANGE IN BENEFICIAL OWNERSHIP OF THIS TOKEN WARRANT WITHOUT THE PRIOR CONSENT OF THE COMPANY.

REGULATION S LEGEND. THIS TOKEN WARRANT AND THE CERTIFICATE TOKEN HAVE NOT BEEN, AND WILL NOT BE, REGISTERED UNDER ANY SECURITIES LAWS, INCLUDING THOSE OF THE UNITED STATES OF AMERICA. THIS TOKEN WARRANT AND THE CERTIFICATE TOKEN ARE ONLY BEING OFFERED FOR SALE OUTSIDE THE UNITED STATES OF AMERICA TO PERSONS OTHER THAN U.S. PERSONS IN OFFSHORE TRANSACTIONS MEETING THE REQUIREMENTS OF REGULATION S UNDER THE SECURITIES ACT (“REGULATION S”). AS USED HEREIN, THE TERMS “OFFSHORE TRANSACTIONS” AND “U.S. PERSON” HAVE THE MEANINGS GIVEN TO THEM IN REGULATION S. THIS AGREEMENT. THIS TOKEN WARRANT AND THE CERTIFICATE TOKEN ARE NOT PERMITTED TO BE OFFERED OR SOLD (INCLUDING OPENING A SHORT POSITION IN SUCH SECURITIES) IN THE UNITED STATES OR TO U.S. PERSONS AS DEFINED BY RULE 902(k) ADOPTED UNDER THE ACT, UNLESS THEY ARE REGISTERED UNDER THE SECURITIES ACT OF 1933 (THE “ACT”), OR AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE ACT IS AVAILABLE. YOU MAY RESELL SUCH SECURITIES ONLY PURSUANT TO AN EXEMPTION FROM REGISTRATION UNDER THE ACT OR OTHERWISE IN ACCORDANCE WITH THE PROVISIONS OF REGULATION S OF THE ACT, OR IN TRANSACTIONS EFFECTED OUTSIDE OF THE UNITED STATES PROVIDED YOU DO NOT SOLICIT (AND NO ONE ACTING ON YOUR BEHALF SOLICITS) PURCHASERS IN THE UNITED STATES OR OTHERWISE ENGAGE(S) IN SELLING EFFORTS IN THE UNITED STATES AND PROVIDED THAT HEDGING TRANSACTIONS INVOLVING THESE SECURITIES MAY NOT BE CONDUCTED UNLESS IN COMPLIANCE WITH THE ACT AND ALL OTHER APPLICABLE SECURITIES LAWS. A HOLDER OF THE SECURITIES WHO IS A DISTRIBUTOR, DEALER, SUB-UNDERWRITER OR OTHER SECURITIES PROFESSIONAL, IN ADDITION, CANNOT RESELL THE SECURITIES TO A U.S. PERSON AS DEFINED BY RULE 902(k) OF REGULATION S UNLESS THE SECURITIES ARE REGISTERED UNDER THE ACT OR AN EXEMPTION FROM REGISTRATION UNDER THE ACT IS AVAILABLE.

CONTENTIOUS HARDFORK LEGEND. IN THE EVENT THAT THE BLOCKCHAIN SYSTEM ON WHICH THE CERTIFICATE TOKEN WAS ORIGINALLY ISSUED UNDERGOES A PERSISTENT “CONTENTIOUS HARDFORK” (AS COMMONLY UNDERSTOOD IN THE BLOCKCHAIN INDUSTRY, RESULTING IN TWO INDEPENDENT BLOCKCHAIN SYSTEMS THAT ARE BOTH REASONABLY EXPECTED TO HAVE INDEPENDENT PERSISTENT COMMERCIAL VALUE), NO COPY OF THE CERTIFICATE TOKEN MAY BE OFFERED, SOLD, OR OTHERWISE TRANSFERRED, PLEDGED, OR HYPOTHECATED UNTIL THE COMPANY HAS DETERMINED, IN ITS SOLE AND ABSOLUTE DISCRETION, WHICH BLOCKCHAIN SYSTEM (AND WHICH CERTIFICATE TOKENS) TO TREAT AS CANONICAL, AND THEN ONLY THE CERTIFICATE TOKEN THUS DETERMINED BY THE COMPANY TO BE CANONICAL MAY BE OFFERED, SOLD, OR OTHERWISE TRANSFERRED, PLEDGED, OR HYPOTHECATED (TO THE EXTENT OTHERWISE PERMITTED). IN THE EVENT THAT THE BLOCKCHAIN SYSTEM DETERMINED BY THE COMPANY TO BE CANONICAL FOLLOWING A CONTENTIOUS HARDFORK ITSELF SUBSEQUENTLY UNDERGOES ANOTHER CONTENTIOUS HARDFORK, THIS RESTRICTIVE LEGEND SHALL LIKEWISE APPLY TO SUCH OTHER CONTENTIOUS HARDFORK, MUTATIS MUTANDIS

EXHIBIT A TO TOKEN WARRANT

FORM OF EXERCISE NOTICE

(To be completed and signed only upon each exercise of the Warrant)

To: _____ (the “*Company*”)

We refer to that certain Warrant to Purchase Tokens of the Company issued on _____ (the “Warrant”). All terms used but not defined herein have the meanings given to them in the Warrant.

Select one of the following two alternatives:

☐ Cash Exercise. On the terms and conditions set forth in the Warrant, the undersigned Holder hereby elects to purchase its Portion of the Tokens (the “*Warrant Tokens*”), pursuant to the terms of the attached Warrant, and tenders herewith payment of the Warrant Exercise Price in full.

☐ Net Exercise Election. On the terms and conditions set forth in the Warrant, the undersigned Holder elects to convert the Warrant into Tokens by net exercise election pursuant to Section 2.5 of the Warrant.

In exercising the Warrant, the undersigned Holder hereby confirms and acknowledges that the representations and warranties set forth in the Token Warrant as they apply to the undersigned Holder are true and complete in all material respects as of the date on which Holder exercises the Warrant. Please (i) issue and deliver the Warrant Tokens to Holder at the network address set forth below and (ii) deliver to Holder, at Holder’s address as set forth below, evidence that the Warrant Tokens have been registered in Holder’s name and allocated to Holder using the network address set forth below.

(Address)

(City, State, Zip Code)

(Federal Tax Identification Number)

(Network Address)

WHEREFORE, the undersigned Holder has executed and delivered the Warrant and this Exercise Notice as of the date set forth below.

HOLDER:

IF AN INDIVIDUAL:

By: _____

(duly authorized signature)

Name: _____

(please print or type full name)

Date: _____

IF AN ENTITY:

(please print or type complete name of entity)

By: _____

(duly authorized signature)

Name: _____

(please print or type full name)

Title: _____

(please print or type full title)

Date: _____